Confirmation Decision: Investigation into 4chan Community Support LLC's failure to comply with an illegal content risk assessment duty, an illegal content safety duty and children's safety duties

Issued under section 132 of the Online Safety Act 2023

21 April 2026

Content warning – explicit descriptions and language included in this document

Non-confidential version – redactions marked with [✂]

Contents

Section

1. Overview....3
2. Introduction and background....5
3. Legal framework....8
4. Ofcom's findings....17
5. Remedy and penalty....27

Annex

A1. Ofcom's correspondence with 4chan....36
A2. Email statements....42
A3. Information notice dated 14 April 2015 (issued under section 100 of the Act)....45
A4. Protection of Children investigation expansion letter....46
A5. Ofcom's review of 4chan.org....47

1. Overview

1.1 This is a confirmation decision ('**Confirmation Decision**') under section 132 of the Online Safety Act 2023 (the '**Act**') in respect of 4chan Community Support LLC, which operates the website 4chan.org. For the purposes of this Confirmation Decision, 4chan Community Support LLC is referred to as '**4chan**' unless otherwise stated.

1.2 For the reasons given in this document, Ofcom finds that 4chan has failed to comply with its duties under the Act. Specifically, 4chan has failed to:

a) assess the risks of UK users encountering illegal content on its service;
b) meet the minimum requirements of the Act in terms of explaining to UK users how its approach to content moderation will protect them from encountering illegal content; and
c) put in place effective restrictions to prevent children from encountering pornography, which is freely available on the service.

What we have decided – in brief

On 12 February 2026, Ofcom issued a provisional notice of contravention ('**Provisional Decision**') to 4chan. This document set out our provisional findings in respect of its compliance with the following duties:

- its duty to conduct a suitable and sufficient illegal content risk assessment in respect of 4chan.org as required by section 9(2) of the Act;
- its illegal content safety duty under section 10(5) of the Act to include provisions in the terms of service specifying how individuals are to be protected from illegal content; and
- its duties to protect children from encountering primary priority content (specifically, pornographic content) through the use of highly effective age assurance under section 12 of the Act.

The document also set out the remedies and penalties we proposed to impose if we issued a confirmation decision in respect of our provisional findings.

We gave 4chan the opportunity to make representations about the matters set out in the Provisional Decision. No substantive representations were received from 4chan.

In line with the Provisional Decision, Ofcom therefore determines that 4chan has failed, and is failing, to comply with, the requirements under sections 9(2), 10(5) and 12 of the Act.

In light of this determination, Ofcom is imposing the following requirements and fines on 4chan:

Illegal content risk assessment duty breach

- a requirement to comply with section 9(2) of the Act by conducting a suitable and sufficient illegal content risk assessment in respect of 4chan.org by the date 10 working days after the date of this Confirmation Decision;

- a single penalty of **£50,000** in respect of its contravention of its risk assessment duty under section 9(2) of the Act, with an additional daily penalty of **£200 per day (for a maximum of 60 days, starting with the day after the requirements deadline)** for continued non-compliance.

Illegal content safety duty breach

- a requirement to comply with section 10(5) of the Act by including provisions in the terms of service specifying how individuals are to be protected from illegal content, addressing each paragraph of section 10(3) and, in relation to paragraph (a), separately addressing terrorism content, CSEA content and other priority content, by the date 10 working days after the date of this Confirmation Decision;
- a single penalty of **£20,000** in respect of its contravention of its illegal content safety duty under section 10(5) of the Act, with an additional daily penalty of **£100 per day (for a maximum of 60 days, starting on the day after the requirements deadline)** for continued non-compliance.

Children's safety duties breach

- a requirement to take the following steps to comply with section 12 of the Act: implementing highly effective age assurance to prevent children of any age from encountering primary priority content that is harmful to children which 4chan identifies on 4chan.org, which it operates, by the date 10 working days after the date of this Confirmation Decision;
- a single penalty of **£450,000** in respect of its contraventions of its safety duties protecting children under section 12 of the Act, with an additional daily penalty of **£500 per day (for a maximum of 60 days, starting on the day after the requirements deadline)** for continued non-compliance.

2. Introduction and background

2.1 In this section we set out the background to this investigation, including our correspondence with 4chan.

4chan.org

2.2 4chan.org is an open-access forum-based site that allows users to post images and text to sub-forums (known as 'boards') that can be viewed by others on the site. There is a large number of boards present on 4chan that cover a wide range of topics and content types. Each board is subject to different rules on what is and is not allowed to be posted on that board.

2.3 4chan presents its terms of service on a page titled 'Rules' which acts as the central reference point for the service's policies supported by a separate 'FAQs' page. For the purposes of this Confirmation Decision, we refer to both 4chan's 'Rules' and 'FAQs' as 4chan's terms of service.

2.4 4chan.org is provided by 4chan. The content on 4chan.org is ephemeral in nature, meaning that it is removed from the site after a period of time, depending on its popularity and engagement.

Background and correspondence with 4chan

2.5 Following our publication of the illegal content risk assessment guidance[1] ('**the Guidance**') and the first version of the user-to-user illegal content codes of practice[2] ('**U2U Illegal Content Codes**') on 16 December 2024, providers of a user-to-user service ('**U2U service**') already in operation on that date were required to carry out an illegal content risk assessment of its service(s) by 16 March 2025.

2.6 As part of Ofcom's efforts to promote compliance across industry with the duties under the Act, we sought to engage with providers of certain services, including 4chan, before those duties came into effect.

2.7 On 27 March 2025, Ofcom's Supervision team contacted 4chan by email offering an introductory meeting and informing 4chan that we considered 4chan.org to be within scope of the Act. We explained 4chan's duties under the Act, in particular the requirement to complete its illegal content risk assessment in respect of 4chan.org and the consequences of a failure to comply. We also explained Ofcom's information gathering powers and notified 4chan of our intention to issue them with an information request.[3] On 8 April 2025, Ofcom contacted 4chan again to reiterate the offer of a meeting. We did not receive a response to either of these emails.

[1] Protecting people from illegal harms online: Risk Assessment Guidance and Risk Profiles, published 16 December 2024.
[2] Illegal content Codes of Practice for user-to-user services, published 24 February 2025.
[3] Under section 100 of the Act Ofcom may by notice require any information that it requires for the purpose of exercising, or deciding whether to exercise, any of its online safety functions. We refer to the notice of these requests for information as statutory information notices.

2.8 On 14 April 2025, Ofcom issued 4chan with a statutory information notice requiring it to provide Ofcom with the written record of its illegal content risk assessment in respect of 4chan.org as part of our Illegal Content Risk Assessment Enforcement Programme.[4,5] 4chan did not provide the information requested by the response deadline and has not done so as of the date of this Confirmation Decision.

2.9 On 10 June 2025, Ofcom opened an investigation into 4chan's compliance with the Act, specifically whether 4chan had failed to respond to a statutory information notice; failed to complete and keep a record of a suitable and sufficient illegal content risk assessment; and failed to comply with the safety duties about illegal content.[6]

2.10 On 16 June 2025, Ofcom issued 4chan with a second statutory information notice requiring it to provide information relevant to the imposing of a penalty at the end of an investigation; specifically, details regarding 4chan's Qualifying Worldwide Revenue ('**QWR**'). 4chan did not provide the information requested by the response deadline and has not done so as of the date of this Confirmation Decision.

2.11 On 12 August 2025, Ofcom issued 4chan with a provisional decision under section 130 of the Act relating to its failure to comply with the two statutory information notices noted above.

2.12 On 16 August 2025, Ofcom received an email from [✂] stating that they were now representing 4chan and providing representations in response to our 12 August 2025 provisional decision. These representations stated that 4chan is an American company with no establishment, assets, or operations in the United Kingdom, and referenced the protection of American businesses by the First Amendment. It noted that Ofcom had not used the procedure set out under the agreed Mutual Legal Assistance Treaty ('**MLAT**') to serve the 12 August 2025 provisional decision. It said that US courts would not enforce penalties imposed on American companies by a foreign country. It said that 4chan did not concede jurisdiction and does not accept service.[7]

2.13 On 27 August 2025, 4chan (together with another party) filed a complaint against Ofcom in the United States District Court for the District of Columbia.[8]

2.14 On 13 October 2025, Ofcom issued its confirmation decision in relation to 4chan's failure to comply with the two statutory information notices. The decision imposed on 4chan a single penalty of £20,000, a requirement to take immediate steps to comply with statutory information notices, and in the event of continuing non-compliance, a daily rate penalty at

[4] See Annex 3.
[5] Enforcement Programme to monitor compliance with the illegal content risk assessment duties and record keeping duties.
[6] Investigation into 4chan and its compliance with duties to protect its users from illegal content.
[7] See email 1 within Annex 2.
[8] 4chan and the other party are seeking a declaratory judgment intended to stop Ofcom from enforcing the Act against them. On 1 December 2025, Ofcom filed a motion asking the US Court to dismiss all of 4chan and the other party's claims for lack of jurisdiction and we await the outcome. Ofcom fully reserves all of its rights in relation to the complaint under all applicable laws, including (but not limited to) its rights to object to the jurisdiction of the U.S. District Court for the District of Columbia on the basis of sovereign immunity, lack of subject matter jurisdiction, or any other applicable ground. It would not be appropriate for us to address the claims made under US law here, and we do not consider it necessary for the purpose of this Confirmation Decision.

a rate of £100 per day for up to 60 days.[9] 4chan has not taken any steps to comply with the requirements of the statutory information notices, nor has it paid either of the penalties (the daily rate penalty being capped at £6,000) as at the date of this Confirmation Decision.

2.15 On 21 November 2025, 4chan's legal representative emailed Ofcom stating "*My client doesn't answer to you, because it is American. It did not ask to be contacted by Ofcom, it did not want to be contacted by Ofcom, Ofcom has no authority to demand anything of it*".[10]

2.16 On 4 December 2025, Ofcom announced that it was expanding the scope of the investigation to include consideration of whether there are reasonable grounds to believe that 4chan has failed, or is failing, to comply with its duties under section 12 of the Act.[11]

2.17 Following this announcement, 4chan's legal representative stated that "[*Ofcom's*] *"age assurance" rules would destroy anonymity online, which is protected by the First Amendment. Accordingly, 4chan will not be implementing your "age assurance" rules*".[12]

Provisional Decision on sections 9(2), 10(5) and 12 of the Act

2.18 On 12 February 2026, we issued our Provisional Decision to 4chan. In the Provisional Decision, we informed 4chan that it had until 5pm on 26 February 2026 to make written representations to Ofcom about the matters set out in the Provisional Decision and until 5pm on 19 February 2026 to inform Ofcom if it wished to make oral representations in relation to these matters.

2.19 4chan did not respond or submit any representations by the stipulated deadline. On 27 February 2026, we wrote to 4chan to advise that, in line with our Enforcement Guidance, the next step in the investigation, in the absence of any representations on the Provisional Decision, would be to pass the case to the final decision maker.[13]

2.20 On 27 February 2026, 4chan's legal representative responded to acknowledge our email but made no representations on the substance of the Provisional Decision.[14]

Interpretation

2.21 Words or expressions used in this Confirmation Decision on the breaches and penalty have the same meaning as in the Act except as otherwise stated.

[9] Confirmation Decision: Investigation into 4chan Community Support LLC's failure to comply with two statutory information requests (non-confidential) published 18 November 2025.
[10] See email 3 within Annex 2.
[11] Investigation into 4chan and its compliance with duties to protect its users from illegal content.
[12] See email 4 within Annex 2.
[13] See paragraph 6.7 of Ofcom's Online Safety Enforcement Guidance, published 16 December 2024.
[14] See email 5 within Annex 2.

3. Legal framework

Scope of the Act

3.1 Part 3 of the Act places duties of care on providers of search services and user-to-user services with links with the United Kingdom ('**UK**'). The duties extend only to the design, operation and use of the service in the UK and, for duties expressed to apply in relation to 'users', as it affects the UK users of the service.[15]

3.2 A service is a regulated user-to-user service ('**U2U service**') under the Act[16] if:

a) It is an internet service[17] by means of which content[18] that is generated directly on the service by a user[19] of the service or uploaded to or shared on the service by a user of the service, may be encountered[20] by another user, or other users, of the service.[21]
b) It has "links with the United Kingdom"; and
c) It is not an exempt service under Schedule 1[22] or a service described in Schedule 2 (services combining user-generated content or search content not regulated by the Act with pornographic content that is regulated).[23]

3.3 A U2U service has "links with the United Kingdom" if one or more of the following criteria are met:

a) The service has a "significant number of United Kingdom users";[24]
b) "United Kingdom users form one of the target markets for the service (or the only target market)";[25] or
c) The service is capable of being used in the United Kingdom by individuals and there are reasonable grounds to believe that there is a material risk of significant harm[26]

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[15] Section 8(3) of the Act.
[16] Reference in the Act to a U2U service include a service provided from within and outside of the United Kingdom (section 204(1)).
[17] Section 228(1) of the Act "a service that is made available by means of the internet".
[18] "Content" means "anything communicated by the means of an internet service, whether publicly or privately, including written material or messages, oral communication, photographs, videos, visual images, music and data of any description" (section 236(1)).
[19] "User" is defined in section 227 of the Act and includes registered and unregistered users (section 227(2)).
[20] "Encounter" in relation to content, means read, view, hear or otherwise experience content (section 236(1)).
[21] Section 3(1). It does not matter if content is actually shared with another user or users as long as a service has a functionality that allows such sharing, and it does not matter what proportion of content on a service is user-to-user content (section 3(2)).
[22] Exempt U2U services under Schedule 1 include where the only user-generated content enabled by the service is email, SMS, MSS or one-to-one live aural communication, services where functionalities are limited to posting reviews or comments relating to provider content, where the U2U service is an internal business service, or where it is provided by a public body, and by education or childcare providers.
[23] Section 4(2).
[24] A "user" is a "United Kingdom user" if the user is an individual in the United Kingdom or an entity incorporated or formed under the law of any part of the United Kingdom (section 227(1)).
[25] Section 4(5)(b).
[26] The Act defines "harm" in section 234(1) as meaning "physical or psychological harm". Under section 234(10), reference to "risks of harm" is to be read in the same way as "harm". Section 234 gives further interpretation of risks of "harm" presented by content.

presented to individuals in the United Kingdom by user generated content[27] present on the service.[28]

3.4 Providers of regulated services must comply with the relevant duties in the Act, regardless of whether they are based in the UK or not.[29] The Act treats the 'provider' as being the entity that has control over who can use the U2U service (and that entity alone).[30] If no entity has control over who can use the user-to-user part of a U2U service, but an individual or individuals have control over who can use that part, the provider of the service is that individual or those individuals.[31]

Children's access assessments

3.5 Sections 35 and 36 of the Act require providers of regulated U2U services in scope of Part 3 to carry out a children's access assessment ('**CAA**') in relation to each service. The purpose of a CAA is to assess and determine:

a) whether children are able to access the service, or any part of the service; and
b) where children are able to access the service, whether the service meets the "child user condition" within the meaning of the Act.[32]

3.6 Section 36 of the Act further requires providers to complete, record in writing, and retain a CAA for each relevant service. Providers were required to complete and record their first CAA by the statutory deadline of 16 April 2025.[33]

3.7 Where a provider has failed to complete the first required CAA by that statutory deadline, sections 37(4) and (5) of the Act provide that the service is to be treated as "likely to be accessed by children" from 16 April 2025 until such time as a CAA is completed and recorded.[34]

3.8 Section 12 of the Act sets out the safety duties that apply in relation to regulated U2U services that are "likely to be accessed by children". Accordingly, where a service is treated as "likely to be accessed by children" under section 37 of the Act, the duties in section 12 apply to that service.

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[27] Under section 4(8), "user generated content" has the meaning in section 55(3) and (4). Under those sections, it is content that (a) that is (i) generated directly on the service by a user of the service or uploaded to or shared on that service by a user of the service and (b) that may be encountered by another user, or other users, of the service by means of the service. It includes content generated, uploaded or shared by means of software or an automated tool applied by the user. Section 55(4)(b) addressed when a bot or automated tool is regarded as a user.

[28] Section 4(6).

[29] Section 204(1).

[30] Section 226(2). "Entity" means a body or association of persons or an organisation, regardless of whether the body, association or organisation is formed under the law or any part of the UK or of a country outside the UK, or a legal person under the law which it is formed" (section 236(1)).

[31] Section 226(3).

[32] Section 35(3) of the Act.

[33] Section 36(1) and Schedule 3 of the Act.

[34] Meaning of "likely to be accessed by children": 37(4) The second case is where the provider of the service fails to carry out the first children's access assessment as required by section 36(1).
(5) In that case—
(a) the service is to be treated as likely to be accessed by children from the date by which the first children's access assessment was required to have been completed (see Part 1 of Schedule 3), and
(b) the service is to continue to be treated as likely to be accessed by children by reason of subsection (4) until such time as the provider completes the first children's access assessment of the service.

Relevant duties on providers

Illegal content risk assessment duty

3.9 A provider of a regulated U2U service must carry out an illegal content risk assessment of the service.

3.10 Under section 9(2) of the Act, providers of U2U services have a duty to carry out a suitable and sufficient illegal content risk assessment at the time set out in, or provided by, Schedule 3. Paragraph 1 of Schedule 3 states that the first illegal content risk assessment of a service must be completed within the period of three months beginning with the day on which Ofcom's Guidance is published, where the service is in operation immediately before the day on which the guidance is published. Ofcom's Guidance was published on 16 December 2024, so providers of U2U services already in operation at that time were required to carry out their first illegal content risk assessments by 16 March 2025.

3.11 A suitable and sufficient risk assessment involved an assessment of the 'relevant matters' set out in section 9(5) of the Act, taking into account the risk profile for services of that kind. These 'relevant matters' are:

a) the user base;
b) the level of risk of individuals who are users of the service encountering the following by means of the service—

   i) each kind of priority illegal content (with each kind separately assessed); and
   ii) other illegal content;

   taking into account (in particular) algorithms used by the service, and how easily, quickly and widely content may be disseminated by means of the service;

c) the level of risk of the service being used for the commission or facilitation of a priority offence;
d) the level of risk of harm to individuals presented by illegal content of different kinds or by the use of the service for the commission or facilitation of a priority offence;
e) the level of risk of functionalities of the service facilitating the presence or dissemination of illegal content or the use of the service for the commission or facilitation of a priority offence, identifying and assessing those functionalities that present higher levels of risk;
f) the different ways in which the service is used, and the impact of such use on the level of risk of harm that might be suffered by individuals;
g) the nature, and severity, of the harm that might be suffered by individuals from the matters identified in accordance with paragraphs (b) to (f);
h) how the design and operation of the service (including the business model, governance, use of proactive technology, measures to promote users' media literacy and safe use of the service, and other systems and processes) may reduce or increase the risks identified.

3.12 For the purposes of this duty and the illegal content safety duties, the meaning of 'illegal content' and 'priority illegal content' is set out in section 59 of the Act. In essence, 'illegal content' means content that amounts to a 'relevant offence', as further explained in section 59(3)-(6). Priority illegal content is content that amounts to a 'priority offence' as listed in Schedules 5 (terrorism offences), 6 (offences related to child sexual exploitation or abuse) or 7 (other priority offences). For the purposes of determining whether content amounts to an offence, no account is to be taken of whether or not anything done in relation to the

content takes place in the UK.[35] This means it does not matter whether the user uploading the content, the service hosting the content or the person accessing the content are in the United Kingdom.[36]

Illegal content safety duty – terms of service

3.13 Section 10(5) of the Act requires providers of regulated U2U services to include provisions in the terms of service specifying how individuals are to be protected from illegal content, addressing each paragraph of section 10(3) and separately addressing, terrorism content, CSEA content and other priority illegal content. These provisions should be clear and accessible (section 10(8)) and applied consistently (section 10(6)).

3.14 Section 8(3) explains that these duties (and the risk assessment duty at paragraphs 3.9-3.12 above) extend only to: (a) the design, operation and use of the service in the United Kingdom; and (b) in the case of a duty that is expressed to apply in relation to users of a service, the design, operation and use of the service as it affects UK users of the service.

3.15 The Act requires Ofcom to prepare and issue codes of practice for providers of regulated services describing measures recommended for the purpose of compliance with the duties set out in section 10.[37] Ofcom's first codes of practice relating to the section 10 duties – U2U Illegal Content Codes – came into effect on 17 March 2025.

3.16 If providers follow the steps set out in the U2U Illegal Content Codes, they are deemed to be compliant with the relevant duties under the Act, including the duties set out in section 10.[38] However, it is not mandatory to adopt the codes measures and failure to act in accordance with a provision of the codes does not of itself constitute a breach of the duties.[39] It is open to service providers to take alternative measures to comply with their duties under the Act, provided that these alternative measures are sufficient to achieve the requirements of the Act. Where providers take alternative measures, they must keep a record of what they have done and explain how the relevant safety duties have been met.[40] The Act provides that, in doing so, they must consider the importance of protecting users' rights to freedom of expression within the law and of protecting users from breaches of relevant privacy laws.[41]

3.17 Ofcom must take into account relevant provisions of the codes of practice in determining a question arising in connection with the exercise of our functions – this includes determining a provider's compliance with any relevant duties.[42] In addition, when assessing whether a provider is compliant with a duty in section 10 by taking 'alternative measures', Ofcom must consider whether those measures: (a) extend across all areas of a service set out in section 10(4) and (b) (where appropriate) incorporate safeguards for freedom of expression and privacy.[43]

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[35] Section 59(11) of the Act.
[36] See paragraph 1.35 of Ofcom's Protecting people from illegal harms online: Illegal Content Judgements Guidance, published 16 December 2024.
[37] Section 41(3) and (10) of the Act.
[38] Section 49(1) of the Act.
[39] Section 50(1) of the Act.
[40] Section 23(4) of the Act.
[41] Section 49(5) of the Act.
[42] Section 50(4) of the Act.
[43] Section 49(6) of the Act.

3.18 For this Confirmation Decision, we have considered the below provision of the U2U Illegal Content Codes,[44] which is applicable to *all* providers of regulated U2U services, regardless of their size or level of risk. This code recommendation represents the *minimum* measure recommended to comply with the duty set out in section 10(5) of the Act.

- ICU G1.2 recommends in relation to section 10(5) that the provider should include the following in the terms of service:
    a) provisions specifying how individuals are to be protected from illegal content, addressing:
        i. separately for each of terrorism content, CSEA content and other priority illegal content, how the provider will minimise the length of time for which any priority illegal content is present; and
        ii. how, where the provider is alerted by a person to the presence of any illegal content, or becomes aware of it in any other way, it will swiftly take down such content.

Safety duties protecting children

3.19 Section 12 of the Act imposes the following core duties relating to age assurance on all service providers in scope of Part 3 that are likely to be accessed by children:

a) To operate a service using proportionate systems and processes designed to prevent children of any age from encountering, by means of the service, primary priority content[45] that is harmful to children; and
b) To comply with that duty through the use of age verification[46] or age estimation[47] (or both) to prevent children of any age from encountering primary priority content that is harmful to children which the provider identifies on the service.
c) Where a provider is required to use age verification or age estimation to comply with the duty to prevent children from encountering primary priority content that is harmful to children, the provider must use age verification or age estimation (or both) that is highly effective at correctly determining whether or not a particular user is a child.

3.20 The requirement to use age verification or age estimation applies in relation to a particular kind of primary priority content that is harmful to children in all cases, except where:

a) the provider's terms of service prohibit the presence of that kind of primary priority content on the service (however expressed), and
b) that prohibition applies to all users of the service.[48]

[44] Illegal content Codes of Practice for user-to-user services, published 24 February 2025.
[45] Section 12(3)(a). Section 61 sets out the definition of "primary priority content that is harmful to children".
[46] Section 230(2) states that "age verification" means any measure designed to verify the exact age of users of a regulated service.
[47] Section 230(3) states that "age estimation" means any measure designed to estimate the age or age-range of users of a regulated service.
[48] Section 12(5) of the Act.

Kinds of primary priority content harmful to children

3.21 Primary priority content that is harmful to children includes pornographic content.[49]

3.22 Pornographic content means content of such a nature that it is reasonable to assume that it was produced solely or principally for the purpose of sexual arousal.[50]

3.23 Not all pornographic content is included as primary priority content. The following content is expressly excluded:

a) Pornographic content that consists only of text; or
b) Consists only of text accompanied by:

i) Identifying content which consists only of text;
ii) Other identifying content which is not itself pornographic content;
iii) A GIF which is not itself pornographic content;
iv) An emoji or other symbol, or
v) Any combination of content listed in (i) to (iv).[51]

Age verification and age estimation

3.24 As set out above, where a provider is required to use age verification or age estimation to prevent children from encountering pornographic content, the method used must be highly effective at accurately determining whether a user is a child.[52]

3.25 Ofcom's 'Guidance on highly effective age assurance for Part 3 Services'[53] (the '**Age Assurance Guidance**') explains that regardless of where the age assurance occurs in the ecosystem or whether it is implemented by the service provider or by a third-party, it is the responsibility of the regulated U2U service provider to ensure that age assurance is implemented in such a way that it is highly effective at determining whether or not a user is a child.

Kinds of age assurance that are capable of being highly effective

3.26 The Age Assurance Guidance sets out[54] a non-exhaustive list of methods considered capable of being highly effective, including:

- Open banking;
- Photo-identification matching;
- Facial age estimation;
- Mobile-network operator (MNO) age checks;
- Credit card checks;
- Email-based age estimation; and
- Digital Identity Services.

3.27 Additionally, the Age Assurance Guidance sets out details of the kinds of age assurance that **are not capable** of being highly effective, including:[55]

- Self-declaration of age;

[49] Section 61(1) and (2) of the Act.
[50] Section 236 of the Act.
[51] Section 61(6) of the Act.
[52] Section 12(6) of the Act.
[53] Guidance on highly effective age assurance for part 3 services, published 24 April 2025.
[54] See paragraphs 3.7 to 3.13 of Ofcom's Guidance on highly effective age assurance for part 3 services.
[55] See paragraphs 3.14 to 3.16 of Ofcom's Guidance on highly effective age assurance for part 3 services.

- Age verification through online payment methods which do not require a user to be over the age of 18; and
- General contractual restrictions on the use of the regulated service by children.

3.28 The Age Assurance Guidance further notes that implementing one of the example methods is not a guarantee that the service is acting in accordance with the requirements of the Act – service providers need to be able to demonstrate that the method has (or methods have) been implemented in such a way that ensures the overall process as a whole is highly effective.[56]

3.29 To be considered highly effective, age assurance should meet each of the following four criteria:[57]

- Technically accurate;
- Robust;
- Reliable; and
- Fair.

Likely to be accessed by children

3.30 Section 37 of the Act defines the three cases where a Part 3 service is to be treated as "likely to be accessed by children".

3.31 The first case is where a children's access assessment carried out by the provider of the service concludes that:

a) It is possible for children to access the service or part of it, and
b) The child user condition is met in relation to:
   i) The service, or
   ii) A part of the service that it is possible for children to access.

In this case, the service should be treated as likely to be accessed by children from the date on which the children's access assessment is completed.

3.32 The second case is where the provider of the service fails to carry out the first children's access assessment as required by section 36(1). In that case:

a) The service is to be treated as likely to be accessed by children from the date by which the first children's access assessment was required to have been completed, and
b) The service is to continue to be treated as likely to be accessed by children by reason of having failed to carry out the first children's access assessment until such time as the provider completed the first children's access assessment of the service.

3.33 The third case is where, following an investigation into a failure to comply with a duty set out in section 36 of the Act, Ofcom determine that a service should be treated as likely to be accessed by children.[58] In this case, the service is to be treated as likely to be accessed by children from the date of, or specified in, the confirmation decision given to the provider of the service.

[56] See paragraph 3.3 of Ofcom's Guidance on highly effective age assurance for part 3 services.
[57] The full, detailed criteria to ensure an age assurance process is highly effective is set out in Section 4 of Ofcom's Guidance on highly effective age assurance for part 3 services.
[58] See section 135(4) and (5) of the Act.

Ofcom's powers to issue confirmation decisions

3.34 Where Ofcom has issued a provisional decision to a person and the period allowed for representations has expired, Ofcom has powers under section 132(3) of the Act to issue a confirmation decision to that person if they are satisfied that that the person has failed, or is failing, to comply with a notified requirement. For the purposes of section 132, a 'notified requirement' means a duty or requirement to which a provisional decision relates.

3.35 A confirmation decision issued by Ofcom under section 132(3) of the Act may require the person to take steps to comply with the notified requirement and/or remedy the failure to comply. It may also require the person to pay a penalty.[59]

3.36 Where a person is required to take steps to comply with the notified requirement and/or remedy the failure to comply, the confirmation decision must specify the steps that are required; set out Ofcom's reasons for the decision to impose those requirements; specify each notified requirement to which the steps relate; specify the period during which the failure to comply with a notified requirement has occurred, and whether the failure is continuing; specify a reasonable period within which each of the steps specified must be taken; contain details of the rights of appeal under section 168 of the Act; and contain information about the consequences of not complying with the requirements included in the decision (including information about the further kinds of enforcement action that it would be open to Ofcom to take).[60]

3.37 Where a person is required to pay a penalty, the confirmation decision must set out Ofcom's reasons for imposing a penalty; specify each notified requirement to which the penalty relates, specify the period during which the failure to comply with a notified requirement has occurred, and whether the failure is continuing; the reasons for the amount of the penalty, including any aggravating or mitigating factors that Ofcom has taken into account; specify a reasonable period within which the penalty must be paid; contain details of the rights of appeal under section 168 of the Act; and contain information about the consequences of not paying the penalty (including information about the further kinds of enforcement action that it would be open to Ofcom to take).[61]

3.38 Where a confirmation decision imposes a daily rate penalty in respect of a continuous failure to comply with a notified requirement, it must, in addition to the matters outlined at paragraph 3.37 above:

a) state the daily rate of the penalty and how the penalty is calculated;
b) state that the person will be liable to pay the penalty if that same failure continues after the compliance date;
c) state the date from which the penalty begins to be payable, which must not be earlier than the day after the compliance date; and
d) provide for the penalty to continue to be payable at the daily rate until i) the date on which the notified requirement is complied with, ii) if the penalty is imposed in respect of a failure to comply with more than one notified requirement, the date on which the last of those requirements is complied with, or iii) an earlier date specified in the confirmation decision.[62]

[59] Section 132(5).
[60] Section 133(4).
[61] Section 137(5).
[62] Section 137(8).

Ofcom's general duties under the Communications Act 2003 and the Human Rights Act 1998

3.39 Ofcom's principal duty, set out in section 3(1) of the Communications Act 2003, is to further the interests of citizens in relation to communications matters and the interests of consumers in relevant markets.

3.40 In carrying out its functions, Ofcom is required under the Communications Act 2003 to secure a number of other matters. These include, in relation to Ofcom's online safety functions, the adequate protection of citizens from harm presented by content on regulated services, through the appropriate use by providers of such services of systems and processes designed to reduce the risk of such harm (section 3(2)(g)). We must also, where relevant in the circumstances, have regard to a number of other considerations including the risk of harm to citizens presented by content on regulated services; the need for a higher level of protection for children than for adults; the need for it to be clear to providers of regulated services how they may comply with their duties under the Act; the need to exercise our functions so as to secure that providers may comply with such duties by taking or using measures, systems or processes which are proportionate to the size or capacity of the provider and the level of risk (and potential severity) of harm presented by the service; the desirability of promoting the use by providers of technologies which are designed to reduce the risk of harm to citizens; and the extent to which providers demonstrate, in a way that is transparent and accountable, that they are complying with their duties (section 3(4A)).

3.41 In performing its duties, Ofcom is required to have regard to the principles under which regulatory activities should be transparent, accountable, proportionate, consistent and targeted only at cases in which action is needed, and any other principles representing best regulatory practice (section 3(3)), and other considerations such as the vulnerability of children and others whose circumstances put them in need of special protection, and the desirability of preventing crime and disorder (section 3(4)(h) and (j)).

3.42 Under section 6 of the Human Rights Act 1998, Ofcom (as a public authority) has a duty to ensure that it does not act in a way which is incompatible with the European Convention on Human Rights ('the Convention'). In particular, in the context of this case, Ofcom has taken account of the related rights under Articles 10 and 11 of the Convention. Article 10 of the Convention provides for the right to freedom of expression. Applied to online services, this right encompasses the service provider's freedom to impart and users' freedom to receive information and ideas without interference by a public authority and regardless of frontiers (Article 10(1)). Article 11 of the Convention provides for the right to freedom of association with others (Article 11(1)) – this extends to the right of people to associate with each other online. The exercise of these freedoms may be subject only to conditions and restrictions which are "prescribed by law and are necessary in a democratic society" in the interests of, among other things, the prevention of crime or disorder, the protection of health or morals or the protection of the reputation or rights of others (Article 10(2) and Article 11(2)). Ofcom must exercise its duties, including those under the Act, in light of these rights and not interfere with the exercise of these freedoms in online services unless it is satisfied that the restrictions it seeks to apply are lawful and necessary in a democratic society to achieve a legitimate aim.

4. Ofcom's findings

Application of the Act to 4chan

4.1 In line with the findings set out in the confirmation decision issued to 4chan on 13 October 2025, Ofcom considers that 4chan is a provider of a regulated U2U service within the meaning of section 4(2) of the Act, and as such is subject to the duties set out in Part 3 of the Act, including sections 9, 10 and 12.[63]

4.2 4chan.org references '4chan Community Support LLC' as being the owner of the copyright of 4chan.org in both the 'Contact' and 'Legal' areas of the site.[64] We therefore find 4chan to be the provider of 4chan.org.

4chan.org is a regulated U2U service

4.3 As set out at paragraph 3.2 above, a service is a regulated U2U service under the Act if:

a) It is an internet service by means of which content that is generated directly on the service by a user of the service or uploaded to or shared on the service by a user of the service, may be encountered by another user, or other users, of the service.
b) It has links with the UK within the meaning of sections 4(5) and 4(6) of the Act; and
c) It is not an exempt service under Schedule 1 or a service described in Schedule 2 (services combining user-generated content or search content not regulated by the Act with pornographic content that is regulated).

4.4 4chan is a regulated U2U service within the meaning of section 4(2) of the Act because it is an internet service through which 'content' (e.g. written material and images) can be generated or shared by users of the service and 'encountered' (e.g. read or viewed) by other users of the service. We further consider that 4chan is not a type of service that is an exempt service under Schedule 1 or a service described in Schedule 2.

4.5 4chan has not contested that 4chan.org meets the criteria set out at paragraphs 4.3(a) - (c) above. For the reasons set out above, we therefore consider that 4chan.org satisfies the requirements set out at 4.3 (a) – (c) above.

4chan.org has links with the United Kingdom

4.6 4chan.org has links with the UK[65] and, as such, is in scope of the Act, as:

a) it has a significant number of UK users; and/or
b) UK users form one of its target markets.

[63] Confirmation Decision: Investigation into 4chan Community Support LLC's failure to comply with two statutory information requests (non-confidential) published 18 November 2025.
[64] 4chan Community Support LLC is expressly referenced as the owner of the copyright of 4chan.org at the bottom of the same 'contact' section of 4chan.org (stating "Copyright 2003-2025 4chan community support LLC. All rights reserved". In the 'legal' section of 4chan.org it again makes reference to the provider, "4chan community support LLC ("Company" or "we")". See documents 1 and 2 within Annex 5.
[65] See paragraph 3.3 above.

4chan.org has a significant number of UK users

4.7 The Act does not define what it meant by a significant number of UK users for the purposes of considering whether a service has links with the UK. We consider that the concept of significant number of UK users should be understood as meaning that the number of UK users on the service is material in the nature and context of the service in question, rather than the number of UK users of the service necessarily being a large or substantial number.[66]

4.8 We have found different sources regarding the number of UK users on 4chan.org. 4chan.org states that the site has 20,000,000+ unique visitors per month and that 7% of its user base are UK users.[67] Data from Similar Web suggests that from February 2025 to February 2026 the number of monthly UK users that visited 4chan.org varied between around 170,000 and 330,000.[68] We consider that a UK user base in the hundreds of thousands is, of itself, a significant number within the meaning of section 4(5)(a) of the Act.

UK users form one of 4chan.org's target markets

4.9 In addition, or in the alternative, we consider that UK users form one of 4chan.org's 'target markets' for the purposes of section 4(5)(b) of the Act.

4.10 The Act does not define what constitutes a target market. However, we consider that a target market relates to a specific group of people (or organisations) that a provider is aiming its service toward.[69] Our view is that there are a variety of factors which would indicate the UK is a target market for a service, including if the service in question:

a) is designed for UK users;
b) is promoted or marketed toward UK users;
c) generates revenue from UK users either directly (e.g. via subscriptions or sales) or indirectly (e.g. through advertising to UK users, including people or organisations);
d) includes functionalities or content that is tailored for UK users; or
e) has a UK domain or provides a UK contact address and/or telephone contact number.

4.11 In this case, we consider that 4chan.org includes UK users as one of its target markets as the 'advertising' section of 4chan.org markets the platform to advertisers on the basis that 7% of its demographic are from the UK, the second largest percentage behind the US.

Confirmation Decision on section 9(2)

4.12 Section 9(2) of the Act requires providers of regulated services to carry out a suitable and sufficient illegal content risk assessment by the time set out in Schedule 3 of the Act. As set out in paragraph 2.5 above, providers of regulated U2U services already in operation at the time we published our illegal content risk assessment guidance on 16 December 2024 were required to carry out their first illegal content risk assessments by 16 March 2025.

[66] See paragraph 3.31 of Ofcom's Guidance on highly effective age assurance and other Part 5 duties.
[67] See document 3 in Annex 5.
[68] Data provided by SimilarWeb covering the time period February 2025 to February 2026.
[69] See paragraphs 3.33 and 3.34 of Ofcom's Guidance on highly effective age assurance and other Part 5 duties.

4chan has not provided Ofcom with a record of its illegal content risk assessment

4.13 As set out at paragraph 2.8 above, on 14 April 2025, Ofcom issued 4chan with a statutory information notice requiring it to provide Ofcom with the written record of its illegal content risk assessment in respect of 4chan.org. 4chan did not provide the information requested by the response deadline.

4.14 On 12 August 2025, 4chan was issued with a provisional decision, identifying its non-compliance with two statutory information notices, including the request to provide a record of its illegal content risk assessment. This provisional decision provided 4chan the opportunity to remedy this non-compliance by submitting the requested information and/or to make representations in response to the provisional finding.

4.15 On 13 October 2025, Ofcom issued a confirmation decision in respect of that breach, which included a direction requiring 4chan to provide the record of its illegal content risk assessment.[70]

4.16 To date, 4chan has not complied with the direction pursuant to that confirmation decision and has not provided the requested record of its illegal content risk assessment.

4chan's position

4.17 Through correspondence with 4chan's legal representative, 4chan has asserted that it "*does not concede jurisdiction and does not accept service*".[71] The representative also stated: *"My client doesn't answer to you, because it is American. It did not ask to be contacted by Ofcom, it did not want to be contacted by Ofcom, Ofcom has no authority to demand anything of it"*.[72]

4.18 As set out at paragraph 4.1 above Ofcom does not accept 4chan's position on jurisdiction and considers that 4chan falls within scope of the Act. The Act explicitly grants Ofcom the legal authority to regulate online safety for individuals in the UK, and this expressly includes conducting investigations into, and imposing penalties for, non-compliance by providers of online services with their duties under the Act.

4.19 The Act also expressly anticipates that it will have extra-territorial effect, stating at section 204(1) that: "*References in this Act to an internet service, a user-to-user service or a search service include a service provided from outside the United Kingdom (as well as such a service provided from within the United Kingdom)*". This does not mean that the Act extends to all users of in-scope services globally. Section 8(3) of the Act makes this clear: "*The duties extend only to the design, operation and use of the service in the UK and, for duties expressed to apply in relation to its 'users', as it affects the UK users of the service*". Similarly, section 226(2) of the Act treats the 'provider' of a U2U service as being the entity that has control over who can use the U2U part of the service (and that entity alone), while section 236(1) defines 'entity' as a "*body or association of persons or an organisation, regardless of whether the body, association or organisation is formed under the law or any*

[70] Confirmation Decision: Investigation into 4chan Community Support LLC's failure to comply with two statutory information requests (non-confidential) published 18 November 2025.
[71] See email 1 in Annex 2.
[72] See email 3 in Annex 2.

part of the UK ***or of a country outside the UK****, or a legal person under the law which it is formed*" (emphasis added).

4.20 On that basis, Ofcom considers that the statutory obligations imposed by the Act apply to 4chan as set out in our confirmation decision of 13 October 2025.

Conclusions

4.21 Based on the evidence set out above, Ofcom determines that 4chan did not conduct its first illegal content risk assessment by 16 March 2025, as required by section 9(2) of the Act, and has not conducted this assessment as at the date of this Confirmation Decision.

4.22 4chan was given advance notification of the statutory information notice issued on 14 April 2025, which detailed the requirement to provide a record of its illegal content risk assessment, but did not provide a response or submit the requested information within the specified timeframe.

4.23 Ofcom subsequently provided 4chan with multiple opportunities to remedy its failure, through means of the provisional decision and subsequent confirmation decision, which contained a legally binding direction to submit the record of its illegal content risk assessment. To date, 4chan has not complied with that direction. This supports this determination that 4chan has not met the statutory requirement by the relevant deadline.

4.24 This determination is further supported by statements made by 4chan's legal representative to Ofcom via email correspondence, as described at paragraph 4.17 above, which state that 4chan does not intend to comply with the requirements of the Act. Ofcom does not accept 4chan's position on jurisdiction and, as set out in the confirmation decision issued on 13 October 2025, considers that 4chan falls within scope of the Act. On that basis, Ofcom determines that 4chan failed to comply with section 9(2) of the Act and that failure is ongoing as at the date of this Confirmation Decision.

Confirmation Decision on section 10(5)

4.25 Section 10(5) of the Act requires providers of regulated services to include provisions in the terms of service specifying how individuals are to be protected from illegal content, addressing each paragraph of section 10(3) and separately addressing priority illegal content.

4.26 To comply with this duty, Ofcom has recommended providers of all U2U services adopt the measures in ICU G1.2.[73]

4.27 As noted at paragraph 2.3 above, 4chan.org presents its terms of service on a page titled 'Rules' which is supported by a separate 'FAQs' page. It has a list of 'Global rules' that apply across all boards on the service followed by a list called 'Image boards' which set out specific rules for different boards.

[73] See page 47, Illegal content Codes of Practice for user-to-user services, published 24 February 2025.

4.28 The terms of service on 4chan.org state,[74] among other things:

a) *"You will not upload, post, discuss, request, or link to anything that violates local or United States law"*;
b) Some specific boards on 4chan have rules against underage content: "*Absolutely no underage content (under 18) of any sort. Violators will be issued permanent bans*."; and
c) "*Outside of /b/ the following content cannot be posted:*[75]

i) Troll posts
ii) Racism
iii) Anthropomorphic ("furry") pornography
iv) Grotesque ("guro") images
v) Loli/shota pornography
vi) *Dubs or GET posts, including "Roll for X" images*".[76]

4.29 The terms of service also explain that content on the service may be moderated and that they may decide to close down user accounts: "*by using this website (the "site"), you agree that you'll follow these rules, and understand that if we reasonably think you haven't followed these rules, we may (at our own discretion) terminate your access to the site*".[77]

4.30 On the FAQs page, users are encouraged to familiarise themselves with the rules before posting:

> *"What should I know before I post?*
>
> *Users are encouraged to participate actively in our community, but only after they have familiarized themselves with the rules and this FAQ. Breaking the rules may result in post deletion, a temporary ban, or in some cases, permanent banishment. Understand the rules before you begin posting!"*.[78]

4.31 There is also an explanation of what a '*moderator'* does.[79] It states that:

> "*moderators are individuals selected to perform general site maintenance. They may delete posts globally, ban users, sticky and close threads, etc*".[80]
>
> The page also explains what a 'janitor' is:
>
> "*janitors are a class between 'end user' and 'moderator.' They are given access to the report system and may delete posts on their assigned board(s)*".[81]
>
> This indicates that the service has individuals acting as moderators (who may or may not be staff members).

[74] See document 4 within Annex 5.
[75] Each board on 4chan is given a shorthand name in the format /X/. "/b/" stands for the "Random" board.
[76] See document 5 within Annex 5.
[77] See document 5 within Annex 5.
[78] See document 5 within Annex 5.
[79] See document 5 within Annex 5.
[80] See document 5 within Annex 5.
[81] See document 5 within Annex 5.

4.32 In addition, it appears that the service has a process for enabling complaints to be made to it. Under its FAQ page, there is an explanation about how posts can be reported: "*reporting posts for review is extremely encouraged, as it helps us remove rule breaking and/or illegal content faster*".[82] This section goes on to explain to users how to report a post:

> "*to file a report, click the "▶" button to the right of the post number to expand the post menu, and then select the "Report post" option. A confirmation dialogue will pop up and ask if the post you are reporting is a rule violation, spam, or if it contains illegal material. Be sure to mark this appropriately! Fill out the captcha, and then click on the Submit button*".[83]

Conclusions

4.33 As explained at paragraph 3.13, Section 10(5) requires 4chan to set out in its terms of service how individuals will be protected from illegal content. In doing so, it should address each paragraph of section 10(3)[84] and separately[85] address terrorism content, CSEA content and other priority illegal content as defined in the Act.

4.34 If 4chan follows the recommended code measure (ICU G1),[86] it will be deemed to be compliant with the duty set out in section 10(5).[87] The baseline measures in ICU G1 mean that within its terms of service, 4chan should specify how individuals are to be protected from illegal content, addressing:

i) separately for each of terrorism content, CSEA content and other priority illegal content, how the provider will minimise the length of time for which any priority illegal content is present; and
ii) how, where the provider is alerted by a person to the presence of any illegal content, or becomes aware of it in any other way, it will swiftly take down such content.

4.35 These foundational measures should be reflected transparently in the terms of service so that users understand both the standards of behaviour expected and the processes the service will use to enforce them.

4.36 In this case, 4chan may prohibit in its terms of service some content which would amount to illegal content under its catch-all requirement of not permitting anything that violates local/US law. However, the terms do not include the detail required by section 10(5) of the Act (and as recommended for compliance with that duty under ICU G1). In particular, although some priority offences are listed as prohibited on certain individual boards, the terms of service do not separately explain how CSEA content, terrorism content or other priority illegal content will be dealt with across the service as a whole or the specific processes that are in place to deal with the requirements under sections 10(2)(a), (3)(a) or (3)(b).

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[82] See document 6 within Annex 5.
[83] See document 6 within Annex 5.
[84] Section 10(3) states *'a duty to operate a service using proportionate systems and processes designed to – (a) minimise the length of time for which any priority content is present; (b) where the provider is alerted by a person to the presence of illegal content, or becomes aware of it in any other way, swiftly take down such content'*.
[85] In relation to section 10(3)(a) of the Act.
[86] See page 47, Illegal content Codes of Practice for user-to-user services, published 24 February 2025.
[87] Section 49(1) of the Act.

4.37 Further, the variation in the rules that apply to the boards and those that apply to the site create ambiguity and uncertainty as to what is and is not allowed on the site. For example, the wording in paragraph 4.28 c) above suggests that all of the content listed at c) i) – vi) *is* allowed on the "/b/" board.

4.38 Under section 10(5), a service must either adopt Ofcom's recommended measures from the U2U Illegal Content Codes or adopt alternative measures that are equally effective. If the service chooses not to follow the codes, its terms of service must still present an approach that can be justified as equivalent in effectiveness.

4.39 We have not found, and 4chan has not provided us with any evidence indicating that 4chan is using alternative measures to those recommended in the U2U Illegal Content Codes.

4.40 On this basis we determine that 4chan's terms of service do not and continue not to comply with the requirements of section 10(5) of the Act.

Confirmation Decision on section 12

4.41 For the following reasons, Ofcom has determined that 4chan has failed – and is continuing to fail – to comply with the duty set out in section 12 of the Act to prevent children from encountering pornographic content on its service.

Application of section 12 of the Act to 4chan

4.42 Section 12 of the Act applies to U2U services that are likely to be accessed by children.

4.43 All Part 3 U2U and search services were required to have carried out a CAA by 16 April 2025. A CAA means an assessment used to determine whether children can access the services or any part of it, and if so, whether the 'child user condition' is met (meaning a significant number of children use the service or it is likely to attract them).[88] A provider may only conclude that children cannot access the service if age verification or age estimation measures are in place so that children are not normally able to access it. As we set out in our CAA guidance, most Part 3 services that are not using highly effective age assurance are likely to be accessed by children within the meaning of the Act.[89]

4.44 4chan and its legal representatives have made clear to Ofcom that it does not intend to implement highly effective age assurance on the site. Following Ofcom's announcement that it would be expanding the scope of the investigation into 4chan to include section 12of the Act, 4chan's legal representative stated: "*Your "age assurance" rules would destroy anonymity online, which is protected by the First Amendment. Accordingly, 4chan will not be implementing your "age assurance" rules*".[90]

4.45 As such, and noting other correspondence from 4chan's legal representative that makes clear 4chan does not intend to comply with the Act (see paragraph 4.17 above), Ofcom has determined that 4chan has not carried out the first required CAA. Accordingly, for the purposes of this investigation, we treat the service as likely to be accessed by children from the date that the CAA should have been completed (16 April 2025).[91] It was open to 4chan

[88] Section 35(2).
[89] Children's access assessments guidance, published 24 April 2025.
[90] See email 4 within Annex 2.
[91] Section 37(4) and (5).

to make representations on this matter following receipt of the Provisional Decision but no such representations, or other evidence, were received.

4.46 Section 12 of the Act sets out the duties that apply to regulated U2U services that are likely to be accessed by children. Based on our assessment above that 4chan should be treated as likely to be accessed by children, the section 12 duties apply to 4chan.org from 25 July 2025.

4chan's compliance with its duties under Part 3, section 12 of the Act

4.47 For the following reasons, Ofcom determines that 4chan failed – and is continuing to fail – to comply with the duty set out within section 12 of the Act to implement highly effective age assurance to prevent children from encountering pornographic content on 4chan.org.

4.48 In making this determination, Ofcom has had regard to the relevant measures in the Protection of Children Code of Practice for U2U services[92] (including measures PCU B2 and PCU B4).[93]

4.49 Ofcom makes this determination in respect of the period from 25 July 2025 to at least 18 March 2026.

4chan allows user-generated pornographic content on the service

4.50 4chan's 'Global Rules' do not prohibit primary priority content for the purposes of section 12(5)(a) of the Act and include specific directions on where to post pornography on the service, i.e. which boards it should be posted on.

4.51 4chan has a section of boards called 'Adult (NSFW)',[94] which can be accessed directly from the landing page. The boards under 'Adult (NSFW)' are: 'Sexy Beautiful Women'; 'Hardcore'; 'Handsome Men'; 'Hentai'; 'Ecchi'; 'Yuri'; 'Hentai/Alternative'; 'Yaoi'; 'Torrents'; 'High Resolution'; 'Adult GIF'; 'Adult Cartoons' and 'Adult Requests'.[95] These boards appear from their names to be dedicated to pornographic content. For example, the 'Global Rules' state that:

a) "*All requests for adult content belong on /r/…*"[96]
b) On /s4s/ or 'Shit 4chan Says' "*No porn dump threads. Keep that shit on /b/.*"[97]
c) On /hc/ or 'Hardcore' "*only tasteful hardcore pornography allowed*."[98]
d) On /hm/ or 'Handsome Men' "*only tasteful adult male photos and pornography is allowed*".[99]

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[92] Protection of Children Code of Practice for user-to-user services, published 4 July 2025.
[93] It is not necessary to determine which measure applies in this case. Regardless of whether a service has a principal purpose of disseminating pornographic content, section 12 of the Act requires providers of services that are likely to be accessed by children and that allow such content to implement highly effective age assurance.
[94] NSFW stands for 'not safe for work' and serves as a warning that content (images, videos, text) may contain explicit, offensive, violent, or otherwise inappropriate material, making it unsuitable for viewing in a professional setting or public places.
[95] See document 7 within Annex 5.
[96] See document 8 within Annex 5.
[97] See document 9 within Annex 5.
[98] See document 10 within Annex 5.
[99] See document 11 within Annex 5.

4.52 On 21 November 2025, we carried out an initial user review of 4chan.org to inform our investigation. Our review found pornographic content was available within at least the following Boards: 'Sexy Beautiful Women'; 'Hardcore'; 'Handsome Men'; 'Hentai'; 'Ecchi'; 'Yuri'; 'Hentai/Alternative'; 'Yaoi'; 'Torrents'; 'High Resolution'; 'Adult GIF'; 'Adult Cartoons' and 'Adult Requests'. Although not all of the content on each of the boards in the Adult NSFW section is pornography, large amounts of pornographic content was found on all of them. We have set out in Annex 5 the evidence gathered during the review and other relevant evidence that we collected at subsequent dates.

4chan does not use highly effective age assurance to identify children and prevent them from encountering pornographic content

4.53 To comply with section 12 of the Act, providers of Part 3 services that allow pornographic content must use age verification or age estimation (or both) to ensure that children are prevented from encountering user-generated pornographic content on its services. The age verification or age estimation used must be of such a kind, and used in such a way, that it is highly effective at correctly determining whether or not a particular user is a child.

4.54 Paragraphs 2.15 to 2.16 of Ofcom's Age Assurance Guidance set out the kinds of age verification or age estimation that may be capable of being highly effective at determining whether or not a particular user is a child, as well as kinds of age assurance that are not capable of being highly effective.[100] The Age Assurance Guidance states that general contractual restrictions, including conditions in the terms of service prohibiting users who are under 18, general disclaimers that users should be over 18, and warnings on specific content that the content is only suitable for over 18s, are not capable of being highly effective if used in isolation.

4.55 Ofcom's user review of 4chan.org on 21 November 2025 demonstrated that at no stage while accessing the service, including when accessing boards with adult content permitted, were Ofcom's reviewers required to complete any form of age verification or age estimation. The only reference to age-related access observed was a statement in the service's 'Global Rules' that "*You will immediately cease and not continue to access the site if you are under the age of 18*".[101]

4.56 During a subsequent user review of 4chan.org carried out on 20 January 2025 we encountered a pop-up disclaimer when clicking on Adult NSFW boards which we were easily able to bypass with one click and no age assurance.[102] The disclaimer states that "*The content of this website is for mature audiences only and may not be suitable for minors. If you are a minor or it is illegal for you to access mature images and language, do not proceed*". This appears to be a new feature of the site but is still insufficient to prevent children from encountering primary priority content, in line with the Age Assurance Guidance. A lack of highly effective age assurance means unfettered access for all users of the site, including child-users.

4.57 As set out in paragraph 3.27 above, the Age Assurance Guidance sets out that self-declaration of age and general contractual restrictions on the use of the regulated service by children are not capable of being highly effective.[103]

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[100] Guidance on highly effective age assurance for part 3 services.
[101] See document 12 within Annex 5.
[102] See document 13 within Annex 5.
[103] See also section 230(4) of the Act: "A measure which requires a user to self-declare their age (without more) is not to be regarded as age verification or age estimation."

Conclusions

4.58 The user-generated content that is allowed and can be encountered on 4chan.org by other users of the service is sexually explicit and constitutes pornographic content, in that the content is of such a nature that it is reasonable to assume that it was produced solely or principally for the purpose of sexual arousal.[104] For these reasons, Ofcom has determined that pornographic content is available on 4chan.

4.59 From 25 July 2025, 4chan was required to implement age assurance of a kind that is highly effective at determining whether or not a UK user is under the age of 18, prior to pornographic material being displayed to its users. As set out in paragraph 3.1 above, the Act only applies to UK users and measures such as implementing age assurance are only required for UK users. Since we expanded the investigation to consider 4chan's compliance with its duties to protect children, we have observed the introduction of a self-declaration pop-up on 4chan.org, but as set out at section 230(4) of the Act, this is not to be regarded of age verification or age estimation.

4.60 Ofcom has determined that since 25 July 2025 and on an ongoing basis, no age verification or age estimation that is capable of being highly effective at identifying whether a user is a child is in place on 4chan.org.

4.61 Therefore, Ofcom has determined that 4chan, as the provider of 4chan.org, has failed and is failing to comply with its duties under section 12 of the Act to prevent children from encountering primary priority content from the period of 25 July 2025 to (at least) 18 March 2026.

[104] Section 236 of the Act.

5. Remedy and penalty

5.1 This section sets out our determination on what 4chan should do to remedy the non-compliance and the penalty we are imposing.

Remedy

5.2 Section 133 of the Act gives Ofcom the power to require the provider of a regulated service take steps to comply with a notified requirement or remedy the failure to comply with a notified requirement – in this case, sections 9(2), 10(5) and 12.

5.3 Where a confirmation decision requires a person to take steps for the purposes of complying with a notified requirement, Ofcom must specify a reasonable period within which each of the steps specified in the decision must be taken, if a step requires the use of a system or process, a reasonable period within which the system or process must begin to be used.[105]

5.4 These requirements would come into effect from the date of this Confirmation Decision.

5.5 Together, sections 9(2), 10(5) and 12 of the Act address core risks to user safety. The illegal content risk assessment duty under section 9(2) is fundamental to ensure that the provider of the regulated service has an adequate understanding of the risks of UK users encountering illegal content, in particular, priority illegal content, and to understand the basis on which appropriate safety measures must be implemented.

5.6 The illegal content safety duties are central to protecting users from harm by requiring services to prevent, mitigate and remove illegal content and make clear to users how they will do so. In particular, section 10(5) is important because it requires transparency about the steps service providers take to protect users from illegal content.

5.7 The children's safety duties under section 12 are of particular importance in ensuring that services likely to be accessed by children provide enhanced protections reflecting their increased vulnerability.

5.8 Taken together, these duties are important to keeping users safe online. Therefore, the requirements we are imposing in this Confirmation Decision are necessary to ensure that those protections are implemented effectively to protect users, including child-users.

5.9 Ofcom imposes the following requirements:

a) Illegal content risk assessment duty breach

- a requirement for 4chan to comply with section 9(2) of the Act by conducting a suitable and sufficient illegal content risk assessment in respect of 4chan.org by the date 10 working days after the date of this Confirmation Decision;

b) Illegal content safety duty breach

- a requirement for 4chan to comply with section 10(5) of the Act by including provisions in the terms of service specifying how individuals are to be protected from illegal content, addressing each paragraph of section 10(3) and, in relation to paragraph (a), separately addressing terrorism content, CSEA content and other

[105] Section 133(4)(f).

priority content, by the date 10 working days after the date of this Confirmation Decision; and

c) Children's safety duties breach

- a requirement for 4chan to take the following steps to comply with section 12 of the Act: implementing highly effective age assurance to prevent children of any age from encountering primary priority content that is harmful to children which 4chan identifies on 4chan.org, which it operates, by the date 10 working days after the date of this Confirmation Decision.[106]

5.10 In determining appropriate compliance requirements, we have considered that, insofar as these requirements result in any interference with the freedom of expression and association of 4chan or the UK users of 4chan.org, such interference is necessary and justified to secure the adequate protection of individuals in the UK from harms posed by illegal content and primary priority content that is harmful to children..

5.11 It is relevant, in this regard, that the requirements we have set out above seek only to bring 4chan.org into compliance with the duties already enacted, and so represent interferences already decided on by Parliament. We consider the compliance requirements we have set out above represent the minimum necessary degree of any interference with the freedoms of the provider and users, noting that the requirements we have imposed in this Confirmation Decision go no further than the relevant duties and/or our Codes recommendations for all user-to-user services (which are measures we have already assessed to be proportionate in our Illegal Harms Statement)[107].

Penalty

5.12 Under section 137(1)) of the Act, Ofcom may, in a confirmation decision, impose a penalty on the provider of a regulated service and in such a case, the confirmation decision must state, amongst other matters, whether this would be a single penalty amount, a daily rate penalty, or a combination of both.

5.13 A single penalty amount is one amount covering the specified breaches.[108] A daily rate penalty may be imposed where the contravention that Ofcom has identified is continuing and the confirmation decision requires the subject of the decision to take action to bring itself into compliance. A daily penalty will be payable for the period specified in the decision, which will generally be until the date on which the subject takes the action required in the decision to bring it into compliance.[109]

[106] There are a wide variety of age assurance solutions currently available in the market that would be likely to meet the criteria set out in our Guidance and can be implemented within 10 working days. As such, we consider this period of time to be sufficient for 4chan to implement an age assurance process that is capable of being highly effective at correctly determining whether or not a user is a child.

[107] See Illegal Harms Statement, 'Introduction, our duties and navigating the statement', paragraphs 1.15-1.21 and Volume 2, paragraphs 2.75-2.88.

[108] Section 130(7)(b) and 137(1)(a) of the Act.

[109] See section 130(7)(b), section 137(1)(b), (2) and (8) and paragraph 6.43 of Ofcom's Online Safety Enforcement Guidance.

5.14 Section 143 of the Act and Schedule 13 to the Act set out the principles that apply when determining the amount of any penalties to be imposed upon a person. In particular, paragraph 2(4) of Schedule 13 of the Act requires that a penalty must be of an amount that Ofcom consider to be appropriate and proportionate to the failure (or failures) in respect of which it is imposed.

5.15 Paragraph 2(1) of Schedule 13 of the Act required that in determining the amount of a penalty to be imposed on a person, Ofcom must take into account any representations made, and evidence provided, by the person, and the effects of the failure (or failure) in respect of which the penalty is imposed.[110]

5.16 In considering the appropriate level of penalty, Ofcom will also take into account the principles set out in our Penalty Guidelines published under section 392 of the Communications Act 2003.[111]

5.17 The maximum penalty Ofcom can impose on a person in respect of a regulated service is £18 million, or 10% of the person's qualifying worldwide revenue for the persons' most recent accounting period, whichever is greater. Ofcom's Online Safety Fees & Penalties Statement defines a provider's 'qualifying worldwide revenue' as the total amount of revenue the provider received during the qualifying period that is referable to the regulated service. Revenue is treated as referable to a regulated U2U service only if and so far as it arises in connection with the provision of those parts of the regulated service where regulated user-generated content may be encountered.

5.18 Under section 168 of the Act, 4chan has a right to appeal to the Upper Tribunal against this Confirmation Decision.

Penalty considerations

It is appropriate to impose a financial penalty in this case

5.19 Ofcom considers that it is appropriate to impose a penalty for 4chan's failure to comply with section 9(2), section 10(5) and section 12 of the Act because:

- **Illegal content risk assessments are a fundamental principle of the Act:** Illegal content risk assessments ensure that service providers understand the risks of users encountering illegal content on their services. A failure to undertake a suitable and sufficient risk assessment means services are unable to effectively mitigate and manage the risk of services being used to commit or facilitate priority offences.
- **Terms of service help users understand the risks associated with using a service:** Section 10(5) is particularly important because it requires transparency about the steps service providers take to protect users from illegal content. This level of clarity enables users to make informed decisions about which services to use and how to protect themselves from potential harm. Failure to comply with section 10(5) means that users cannot properly understand what measures are in place to safeguard against harm or assess whether those measures are sufficient. This lack of transparency can significantly increase the risk of harm to users.

[110] Schedule 13, para 2(1). Where the penalty is imposed in a confirmation decision, Ofcom must also take into account any steps taken by the person towards complying with the duty or requirement specified in the Confirmation notice of contravention or to remedy the failure.
[111] Schedule 13, para 2(5) and paragraph 6.43 of Ofcom's Online Safety Enforcement Guidance.

- **Preventing children from encountering pornographic content is a priority outcome for the UK's online safety regime:** One of the strategic priorities of the Act is to ensure that children do not encounter harmful content online, including pornographic content. Imposing a financial penalty would send a strong message to the industry that non-compliance in this space will not be tolerated.
- **Imposing a penalty would deter 4chan and the wider sector from future contraventions:** As set out in Ofcom's Penalty Guidelines, the central objective for imposing a financial penalty is to effectively deter contraventions of regulatory requirements. Ofcom considers that imposing a financial penalty in this case would incentivise 4chan to take appropriate steps to ensure that it complies in future. It would also ensure that both 4chan and the wider sector understand how seriously Ofcom takes compliance with these duties.

Amount of penalty

5.20 Ofcom's Penalty Guidelines set out the factors we may take into account when determining an appropriate amount of a financial penalty.[112] In accordance with paragraph 2(5) of Schedule 13 to the Act, section 392 of the Communications Act 2003, and the Online Safety Enforcement Guidance,[113] we have had the regard to the Penalty Guidelines and have set out our below consideration to these factors, to the extent that they are relevant to this case.

5.21 We have also considered whether there are any relevant precedents, noting that while past decisions may be relevant, they are not binding and Ofcom may, considering the circumstances of each case, impose higher penalties in future cases than in previous ones to secure effective deterrence.[114]

5.22 On the basis of the various factors set out in this section, we consider that the amount of penalty imposed in this case is both appropriate and proportionate, while being sufficiently high to effectively deter future breaches.

Deterrence

5.23 As set out in our Penalty Guidelines, the central objective of imposing a penalty is deterrence.[115] Any penalty should be sufficiently high to deter the regulated provider from contravening regulatory requirements, and additionally to deter the wider industry from doing so. The level of penalty should be high enough that the provider recognises that it is not more profitable to break the law and pay the consequences than it is to comply with the law in the first instance, and that it should therefore encourage good practice and a culture of compliance across the organisation.

[112] Online Safety Fees and Penalties Statement, published 26 June 2025.
[113] Ofcom is required to have regard to these penalty guidelines when determining the amount of any penalty under section 392(6) Communications Act 2003; see also paragraph 6.42 of our Online Safety Enforcement Guidelines.
[114] See paragraph 1.3 of Ofcom's Penalty Guidelines, published 14 September 2017.
[115] See paragraph 1.11 of Ofcom's Penalty Guidelines, published 14 September 2017.

5.24 As a general matter, we are of the view that the need for deterrence in any penalty imposed for a contravention of illegal content risk assessment duties, illegal content safety duties and protection of children duties is important as these duties are fundamental to Ofcom's regulatory functions in relation to online safety. We therefore believe it is important to ensure that 4chan, and other regulated providers under the Act, understand the importance of complying with their legal duties under the Act.

5.25 We consider that imposing a financial penalty in this case may incentivise 4chan to take appropriate steps to ensure that it complies in the future. It would also ensure that both 4chan and the wider sector understand how seriously Ofcom takes compliance with these duties.

Seriousness, harm and culpability

Seriousness

5.26 The purpose of conducting an illegal content risk assessment under section 9(2) of the Act is to ensure that the provider of the regulated service has an adequate understanding of the risks of UK users encountering illegal content, in particular, priority illegal content, on the service, and the risk that the service may be used to commit or facilitate certain priority offences so that it can then take appropriate and proportionate measures to mitigate those risks.[116]

5.27 Compliance with section 9(2) of the Act is imperative. A failure to comply with this requirement results in Ofcom being unable to assess any measures put in place by 4chan (if any) to protect users from illegal content on 4chan.org. Without an illegal content risk assessment, Ofcom's ability to effectively regulate the online sector in line with our statutory duty to ensure the adequate protection of UK users from harm presented by content on regulated services, through the appropriate use by providers of such services and their systems and processes to reduce the risk of harm, is severely impacted.

5.28 In addition, Ofcom considers that a failure to conduct and record an illegal content risk assessment is inherently a serious matter as it demonstrates that the service is unwilling to identify the risks to UK users posed by content on its service.

5.29 In relation to section 10(5) of the Act, compliance with the illegal content safety duties ensures that UK users are protected from encountering illegal content. A failure to implement clear and effective terms of service mitigates these protections and leaves users at risk of harm from illegal content on the service.

5.30 The requirement of providers to implement highly effective age assurance on their services under section 12 of the Act is key in achieving the Act's primary objective of making regulated internet services safer for UK users, and particularly children. Where providers contravene these requirements, children are at risk of encountering harmful content online. In Ofcom's Confirmation view, this is therefore a serious contravention of the Act.

5.31 We consider that 4chan has been in contravention of its duties under section 12 of the Act since 25 July 2025, and this breach remains ongoing as at the date of this Confirmation Decision. Throughout this period, any user, including children, could view pornographic content on 4chan.org without highly effective age assurance being in place to prevent child-

[116] See paragraphs 1 and 2 of Schedule 7 to the Act.

users from encountering such content. Ofcom considers that it is particularly serious that this failure is still ongoing at the date of this Confirmation Decision.

Harm

5.32 The protection of UK users from priority illegal content is a fundamental priority for Ofcom and the cornerstone of the online safety regime in the UK. Ensuring that providers comply with their duties under the Act to address illegal harms on their services is critical for creating a safer life online for UK users.

5.33 Any failure to comply with duties to assess risks of UK users of a service encountering illegal content gives rise to concerns of potentially serious harm.

5.34 Terms of service typically lay out the rights and responsibilities that a service provider and the users of their service have to one another. They are a tool for users to better understand the risks of using a service. Ofcom's illegal harm statement sets out that this measure codifies provisions required by the Act and is important to ensure transparency around the steps service providers are taking to protect users from illegal content.[117] This allows the user to make an informed choice about what services to use and better protect themselves from harm.

5.35 Failure to comply with section 10(5) therefore prevents users of 4chan as well as Ofcom from understanding what measures have been taken to protect users from harm as well as demonstrating that sufficient measures have been taken and can lead to significant harm to users.

5.36 Preventing children from encountering pornographic content is a priority outcome for the UK's online safety regime. The requirement of providers to implement highly effective age assurance on their services under section 12 of the Act is key in achieving the Act's primary objective of making regulated internet services safer for UK users, and particularly for children.

5.37 Where providers contravene these requirements, children are at risk of encountering pornographic content on the service, which can cause significant emotional and societal harm.[118] Ofcom is particularly concerned where pornography is freely available on 'mixed-use' services, where the mixed-use nature of the service means that children may access areas that are attractive to them and could be assumed safe for them, such as boards relating to games like Pokémon, but inadvertently find themselves on adult sections of the site. This creates a serious risk of accidental exposure to pornographic content and the associated harm. In Ofcom's view, this is therefore a serious contravention of the Act and has been given significant weight in considering the appropriate penalty.

Culpability

5.38 As the provider of 4chan.org, 4chan is responsible for ensuring that it meets the requirements of the Act. On 27 March 2025, Ofcom contacted 4chan, explaining that Ofcom believed 4chan to be in scope of the Act, and provided "*important information to help services comply with the Act"* including links to the 'new rules', including its obligations in respect of conducting an illegal content risk assessment and its duties to comply with the illegal content safety duties contained in section 10. 4chan was therefore given advance

[117] Protecting people from illegal harms online, statement published 16 December 2024. See section 10 - Terms of service and publicly available statements. Volume 2 Service Design and User Choice.
[118] See paragraphs 2.23 to 2.33 of Ofcom's Children's Register of Risks (24 April 2025).

notice of its statutory obligations and had numerous opportunities to come into compliance.

5.39 In addition, as part of our Illegal Content Risk Assessment Enforcement Programme, Ofcom issued a statutory information notice to 4chan on 14 April 2025, requiring it to submit a record of its illegal content risk assessment by 29 April 2025, as well as various reminders[119] when it was not submitted by the deadline.

5.40 4chan was subsequently issued with a provisional decision on 12 August 2025, which explicitly identified its failure to comply with its duties, while providing an opportunity for it to be remedied, which 4chan did not take. A confirmation decision was then issued on 13 October 2025, directing 4chan to provide the record of its illegal content risk assessment, with which 4chan has still not complied.[120]

5.41 As noted at paragraph 2.12 above, 4chan's legal representative has told Ofcom that 4chan does not concede jurisdiction and that "*Ofcom has no authority to demand anything of it*".[121] On 4 December 2025, Ofcom wrote to 4chan again to notify them of the expansion of the investigation to include its duties to protect children from harmful content. 4chan's legal representative responded to this and stated "*4chan will not be implementing your "age assurance" rules*".[122]

5.42 The above correspondence suggests 4chan has taken a conscious and deliberate decision not to comply with its regulatory requirements under the Act. We consider this to be a significant aggravating factor when considering the appropriate financial penalty.

Relevant precedents

5.43 As set out in our Penalty Guidelines, Ofcom will have regard to any relevant precedents set by previous cases, but previous penalties do not place an upper threshold on the amount of any penalty we can impose. We have therefore considered penalties issued to date following investigations under the Act.

5.44 Ofcom has not previously found a service provider in breach of its duties under sections 9(2) and 10(5) of the Act, therefore there are no precedents for penalties imposed in respect of these breaches.

5.45 In respect of section 12 of the Act, we have taken account of the following penalties:

a) On 3 December 2025, Ofcom imposed a fine of £1 million on AVS Group Ltd for failing to implement highly effective age assurance on 18 adult sites it provides, as required under section 12 of the Act.[123] The failure to comply with the duty was ongoing at the time the confirmation decision was issued.

b) On 11 February 2026, Ofcom imposed a fine of £800,000 on Kick Online Entertainment S.A. ('Kick Online') for failing to implement highly effective age assurance on its service, motherless.com, between 25 July 2025 and 29 December 2025, as required by section

[119] See paragraph 2.8 above.
[120] Confirmation Decision: Investigation into 4chan Community Support LLC's failure to comply with two statutory information requests (non-confidential) published 18 November 2025.
[121] See email 3 within Annex 2.
[122] See email 4 within Annex 2.
[123] Confirmation Decision: Investigation into AVS Group Ltd's failure to comply with requirements to implement Highly Effective Age Assurance (non-confidential) published 15 January 2026.

12 of the Act.[124] Kick Online had implemented highly effective age assurance on the service after Ofcom issued its provisional decision in this matter.

c) On 23 February 2026, Ofcom imposed a fine of £1,350,000 on 8579 LLC, for failing to implement highly effective assurance on four adult sites it provides.[125] For three of the adult sites, the failure was limited to the period from 25 July 2025 until at least 19 November 2025. For the remaining site, the failure was ongoing at the time the confirmation decision was issued.

Other considerations

The size and financial position of 4chan

5.46 In line with Ofcom's Penalty Guidelines,[126] Ofcom considers the size and turnover of the regulated body to ensure that the overall amount of the penalty is appropriate and proportionate to the contravention in respect of which it is imposed.

5.47 On 16 June 2025, Ofcom requested financial information about 4chan (specifically its QWR) by issuing a statutory information notice, but received no response. We have been unable to find reliable revenue information for 4chan in the public domain.

5.48 Absent this information, we have been unable to consider 4chan's financial position when determining the penalty. However, 4chan.org appears to be a small to medium sized service in terms of user numbers (see paragraphs 4.7-4.11 above) and we have taken this into account in our penalty considerations. Given the lack of reliable information available, we have given limited weight to this factor.

Co-operating with the investigation

5.49 Ofcom contacted 4chan on four occasions before opening its formal investigation on 10 June 2025, but received no response to any communication until we issued the provisional decision on its failure to comply with two statutory information notices on 12 August 2025.

5.50 Ofcom acknowledges that 4chan, via its legal representative, has taken some steps to engage with us during the later parts of the investigation; however, we consider such correspondence has not been of a meaningful or cooperative nature. We consider this to be an aggravating factor when considering an appropriate penalty in this case.

[124] Investigation into Kick Online Entertainment S.A's compliance with the duty to prevent children from encountering pornographic content through the use of age assurance. Update published 12 February 2026 (a non-confidential version of the confirmation decision has not been published as at the date of this Confirmation Decision).
[125] Investigation into 8579 LLC's compliance with the duty to prevent children from encountering pornographic content through the use of age assurance. Update published 23 February 2026 (a non-confidential version of the confirmation decision has not been published as at the date of this Confirmation Decision).
[126] Ofcom's Penalty Guidelines, published 14 September 2017.

Confirmation Decision on penalty

5.51 On the basis that we have found a continuing failure by 4chan to comply with sections 9(2), 10(5) and 12 of the Act, we impose on 4chan a financial penalty for each breach which has both a single and a daily rate element. The daily rate aims to incentivise 4chan to comply with the Act in a timely manner, while a single penalty is appropriate to reflect the seriousness of the failure to comply with sections 9(2), 10(5) and 12 to date.

5.52 A breakdown of these penalty amounts per breach is detailed below. In the below the requirements deadline (the '**requirements deadline**') means the last day for compliance with the relevant requirements, which we have proposed to be 10 working days after the date of this Confirmation Decision, as set out in paragraph 5.9.

Illegal content risk assessment duty

5.53 Taking into account the factors set out above, Ofcom proposes a single penalty of **£50,000** on 4chan in respect of its ongoing contravention of its risk assessment duty, as set out in section 9(2).

5.54 In the event of continuing non-compliance, Ofcom also imposes a daily rate penalty at a rate of **£200 per day** starting from the day after the requirements deadline until the date section 9(2) is complied with, or (if sooner) 60 calendar days starting from the day after the requirements deadline in respect of this contravention.

Illegal content safety duty

5.55 Taking into account the factors set out above, Ofcom imposes a single penalty of **£20,000** on 4chan in respect of its ongoing contravention of its illegal content safety duty, as set out in section 10(5).

5.56 In the event of continuing non-compliance, Ofcom also imposes a daily rate penalty at a rate of **£100 per day** starting from the day after the requirements deadline until the date section 10(5) is complied with, or (if sooner) 60 calendar days starting from the day after the requirements deadline in respect of this contravention.

Safety duties protecting children

5.57 Taking into account the factors set out above, Ofcom imposes a single penalty of **£450,000** on 4chan in respect of its ongoing contravention of its children's safety duties, as set out in section 12.

5.58 In the event of continuing non-compliance, Ofcom also imposes a daily rate penalty at a rate of **£500 per day** starting from the day after the requirements deadline until the date section 12 is complied with, or (if sooner) 60 calendar days starting from the day after the requirements deadline.

5.59 Ofcom requires 4chan to pay all penalties to Ofcom by no later than one calendar month from the later of (1) the date of any confirmation decision issued under section 132 of the Act or (2) the final day for any daily rate penalty that applies.

A1. Ofcom's correspondence with 4chan

A1.1 This Annex sets out the date, subject and content of Ofcom's correspondence with 4chan from March 2025 onwards and includes details of the email addresses the correspondence was sent from and to.

Date	Subject	From	To	Content
27 March 2025	Engaging with Ofcom on Online Safety	[✂]	contact@4chan.org	In this email Ofcom offered 4chan a meeting to discuss compliance, and informed 4chan about the upcoming information request as part of the Illegal Content Risk Assessment Enforcement Programme as well as 4chan's duty in relation to formal information notices. Ofcom received no response to this email.
8 April 2025	Engaging with Ofcom on Online Safety	[✂]	press@4chan.org; bizdev@4chan.org; contact@4chan.org	In this email Ofcom reiterated the offer made on 27 March 2025 for a meeting to discuss the upcoming information request. Ofcom received no response to this email.
14 April 2025	4chan s.100 Final Notice	[✂]	advertise@4chan.org; press@4chan.org; bizdev@4chan.org	In this email Ofcom issued a formal information notice to 4chan under section 100 of the Act (see Annex 1). The notice required the information to be provided by 11:00 GMT on 29 April 2025. Question 1 of the notice stated, "Please provide us with a copy of the written record of your illegal content risk assessment in respect of 4chan". Ofcom received no response to the email or the notice.
30 April 2025	4chan Services duty to comply with requirements of a notice	[✂]	advertise@4chan.org; press@4chan.org; bisdev@4chan.org	In this email Ofcom explained that if we did not receive a response to the information notice by 11:00 GMT on 15 May 2025 that Ofcom would consider next steps, including whether it would be appropriate to open an investigation. Ofcom received no response to this email.

Date	Subject	From	To	Content
9 June 2025	Ofcom investigation into 4chan under the Online Safety Act 2023	[✂]	advertise@4chan.org; press@4chan.org; bizdev@4chan.org	In this email Ofcom sent 4chan an investigation opening letter. This explained that Ofcom had completed an Initial Assessment and decided it was appropriate to formally open an investigation into 4chan's compliance with the duties in section 9(2) (illegal content risk assessment), 10 (illegal content safety duties), 23 (record keeping) and 102(8) (compliance with information notices) of the Act. Ofcom received no response to this email.
16 June 2025	Final legal notice requiring the provision of specified information under section 100 of the Online Safety Act 2023	[✂]	advertise@4chan.org; press@4chan.org; bizdev@4chan.org	In this email Ofcom served 4chan a second formal information notice under section 100 of the Act. The notice required the information regarding 4chan's QWR to be provided by 11:00 GMT on 1 July 2025. Ofcom received no response to the email or the notice.
9 July 2025	Ofcom investigation into 4chan under the Online Safety Act 2023	[✂]	delawarecorp@capitolservices.com; info@capitolservices.com	In this email, Ofcom summarised the matters that it is investigating in relation to 4chan and attached copies of the initial emails to 4chan, copies of the Notices, the failure to respond to an information notice letter and the case opening letter.[63] Ofcom requested that 4chan respond as soon as possible providing the information requested in the information notices and/or set out any additional information it wished to bring to Ofcom's attention in respect of the attached documents. In addition, Ofcom outlined its intent to issue a Confirmation Decision concerning 4chan's compliance with its duty under section 102(8) of the Act, and stated that it would be proceeding with the investigation, including the issue of the Confirmation Decision, if a response was not received by 11:00 GMT on 16 July 2025. [64]
9 July 2025	Ofcom investigation into 4chan under the Online Safety Act 2023	Email from representative at Capitol Services	[✂]	In this email Capitol Services replied to Ofcom's email to it dated 9 July 2025, advising that the email had been forwarded to 4chan.[65]

Date	Subject	From	To	Content
21 July 2025	Ofcom investigation into 4chan under the Online Safety Act 2023	[✂]	Representative at Capitol Services	In this email Ofcom asked Capitol Services whether its client, 4chan, intended to respond to our previous email of 9 July 2025.[66]
21 July 2025	Ofcom investigation into 4chan under the Online Safety Act 2023	Representative at Capitol Services	[✂]	In this email, Capitol Services stated that 'The role of the registered agent is solely to receive and forward legal correspondence and service of process. Capitol Services is not involved in our clients' internal business matters, so unfortunately, I'm unable to provide a timeline for a response or require them to reply.' Capitol Services did however state that Ofcom could send any future legal correspondence to them, and they would ensure it was forwarded on.[67]
12 August 2025	Confirmation Decision: Investigation into 4chan Community Support LLC's failure to comply with two statutory information requests	[✂]	advertise@4chan.org ; press@4chan.org; bizdev@4chan.org delawarecorp@capitolservices.com; info@capitolservices.com; regagent@capitolservices.com	In this email, Ofcom sent 4chan its Confirmation Decision, as well as the two information notices that the Confirmation Decision related to. Ofcom informed 4chan that it had until the 26 August 2025 to make representations to Ofcom with regards to the Confirmation decision.
16 August 2025	Confirmation Decision: Investigation into 4chan Community Support LLC's failure to comply with two statutory information requests	[✂]	[✂]	In this email, [✂] stated that 4chan was now being represented by [✂and that they were making representations on behalf of 4chan. This email then included 4chan's representations, which we address in the confirmation decision.

Date	Subject	From	To	Content
13 Octobe 2025	Confirmation Decision: Investigation into 4chan Community Support LLC's failure to comply with two statutory information requests	[✂]	advertise@4chan.org, press@4chan.org, bizdev@4chan.org, delawarecorp@capitolservices.com, info@capitolservices.com, regagent@capitolservices.com, [✂], [✂], [✂]	In this email, Ofcom sent 4chan its confirmation decision, as well as the two information notices that the confirmation decision related to. Ofcom informed 4chan that the document contains the details of both a single penalty and a daily rate penalty, and that 4chan had until 27 October 2025 to make confidentiality representations with regards to the confirmation decision.
18 November 2025	Non-confidential copy of Confirmation Decision: Investigation into 4chan Community Support LLC's failure to comply with two statutory information requests	[✂]	advertise@4chan.org, press@4chan.org, bizdev@4chan.org, delawarecorp@capitolservices.com, info@capitolservices.com, regagent@capitolservices.com, [✂], [✂], [✂]	In this email, Ofcom wrote to 4chan to highlight they have not provided confidentiality representations in relation to the confirmation decision issued on 13 October 2025, and now Ofcom has published a non-confidential copy of the Confirmation Decision on the Ofcom website.
4 December 2025	URGENT: FOR THE ATTENTION OF 4chan Community Support LLC	[✂]	advertise@4chan.org press@4chan.org, bizdev@4chan.org, delawarecorp@capitc services.com, info@capitolservices.om, regagent@capitolservces.com, [✂], [✂]	In this email, Ofcom sent 4chan notice that the scope of the investigation had been expanded to include duties to protect children from harmful content under the Online Safety Act 2023.
4 December 2025	URGENT: FOR THE ATTENTION OF 4chan Community Support LLC	[✂]	[✂]	In this email, [✂] told Ofcom that 4chan will not be implementing Ofcom's age assurance rules. He also informed Ofcom of the details of the 'GRANITE Act'.

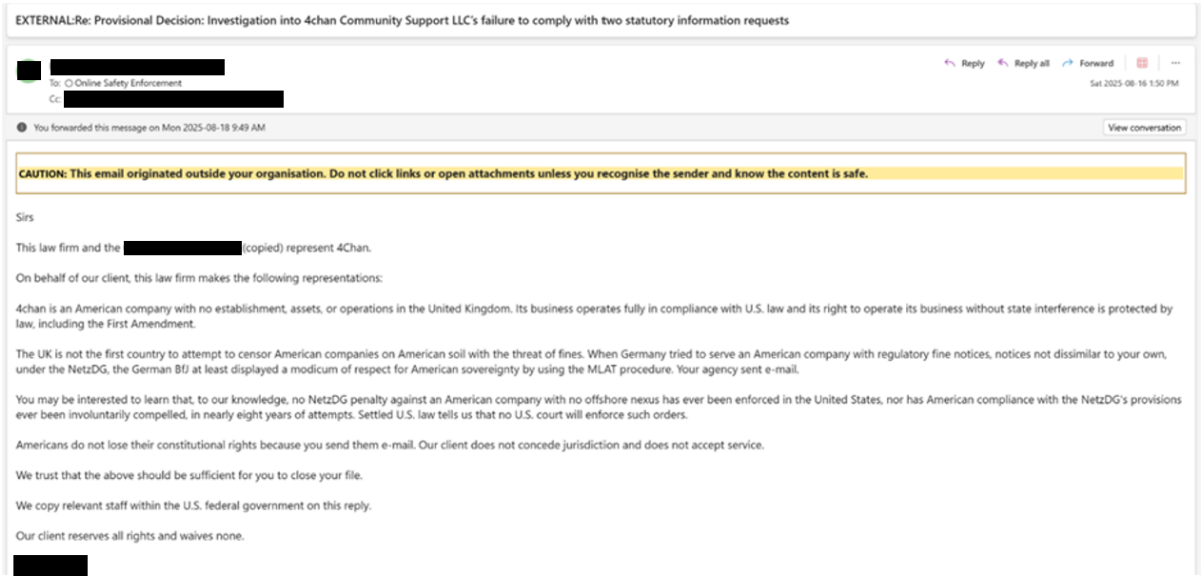
Date	Subject	From	To	Content
11 February 2026	Provisional Decision: Ofcom's investigation into 4chan under the Online Safety Act 2023 – advanced notice of our Enforcement Bulletin update text	[✂]	advertise@4chan.org press@4chan.org, bizdev@4chan.org, delawarecorp@capitolservices.com, info@capitolservices.com, regagent@capitolservices.com, [✂], [✂]	In this email, Ofcom informed 4chan that it had reached a Provisional Decision in relation to sections 9, 10 and 12 of the Act and that the purpose of the email was to provide it with advance notice of the Enforcement Bulletin update in relation to this matter.
11 February 2026	Provisional Decision: Ofcom's investigation into 4chan under the Online Safety Act 2023 – advanced notice of our Enforcement Bulletin update text	[✂]	[✂]	In this email, [✂] stated that the 'GRANITE' Act has successfully got over its first procedural hurdle in Wyoming. He also stated that Ofcom providing advance notice of the text is for "domestic narrative control".
12 February 2026	Provisional Decision – Ofcom's investigation into 4chan under the Online Safety Act 2023	[✂]	advertise@4chan.org press@4chan.org, bizdev@4chan.org, delawarecorp@capitolservices.com, info@capitolservices.com, regagent@capitolservices.com, [✂], [✂]	In this email, Ofcom sent 4chan the Provisional Decision, with supporting evidence, and highlighted that the deadline to submit any representations is noted in the Provisional Decision document.
12 February 2026	Provisional Decision – Ofcom's investigation into 4chan under the Online Safety Act 2023	[✂]	[✂]	In this email, [✂] responded to the Provisional Decision by saying "increasing the size of a censorship fine does not cure its legal invalidity in the United States".

Date	Subject	From	To	Content
27 February 2026	Provisional Decision – Ofcom's investigation into 4chan under the Online Safety Act 2023 – next steps	[✂]	advertise@4chan.org, press@4chan.org, bizdev@4chan.org, delawarecorp@capitolservices.com, info@capitolservices.com, regagent@capitolservices.com, [✂], [✂]	In this email, Ofcom informed 4chan that the deadline to submit written representations – including any supporting evidence – regarding the matters set out in the Provisional Decision, including the proposed penalties, had passed. The email also stated that Ofcom would refer the case to a final decision maker.
27 February 2026	Provisional Decision – Ofcom's investigation into 4chan under the Online Safety Act 2023 – next steps	[✂]	[✂]	In this email, [✂] responded to acknowledge Ofcom's email but made no substantive representations on the Provisional Decision.

A2. Email statements

A2.1 These are statements made by 4chan's legal representatives by email which we have relied upon in making this Confirmation Decision.

Email no.1: 16/08/2025



EXTERNAL:Re: Provisional Decision: Investigation into 4chan Community Support LLC's failure to comply with two statutory information requests

[redacted]
To: Online Safety Enforcement
Cc: [redacted]

Reply Reply all Forward
Sat 2025-08-16 1:50 PM

You forwarded this message on Mon 2025-08-18 9:49 AM
View conversation

CAUTION: This email originated outside your organisation. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Sirs

This law firm and the [redacted] (copied) represent 4Chan.

On behalf of our client, this law firm makes the following representations:

4chan is an American company with no establishment, assets, or operations in the United Kingdom. Its business operates fully in compliance with U.S. law and its right to operate its business without state interference is protected by law, including the First Amendment.

The UK is not the first country to attempt to censor American companies on American soil with the threat of fines. When Germany tried to serve an American company with regulatory fine notices, notices not dissimilar to your own, under the NetzDG, the German BfJ at least displayed a modicum of respect for American sovereignty by using the MLAT procedure. Your agency sent e-mail.

You may be interested to learn that, to our knowledge, no NetzDG penalty against an American company with no offshore nexus has ever been enforced in the United States, nor has American compliance with the NetzDG's provisions ever been involuntarily compelled, in nearly eight years of attempts. Settled U.S. law tells us that no U.S. court will enforce such orders.

Americans do not lose their constitutional rights because you send them e-mail. Our client does not concede jurisdiction and does not accept service.

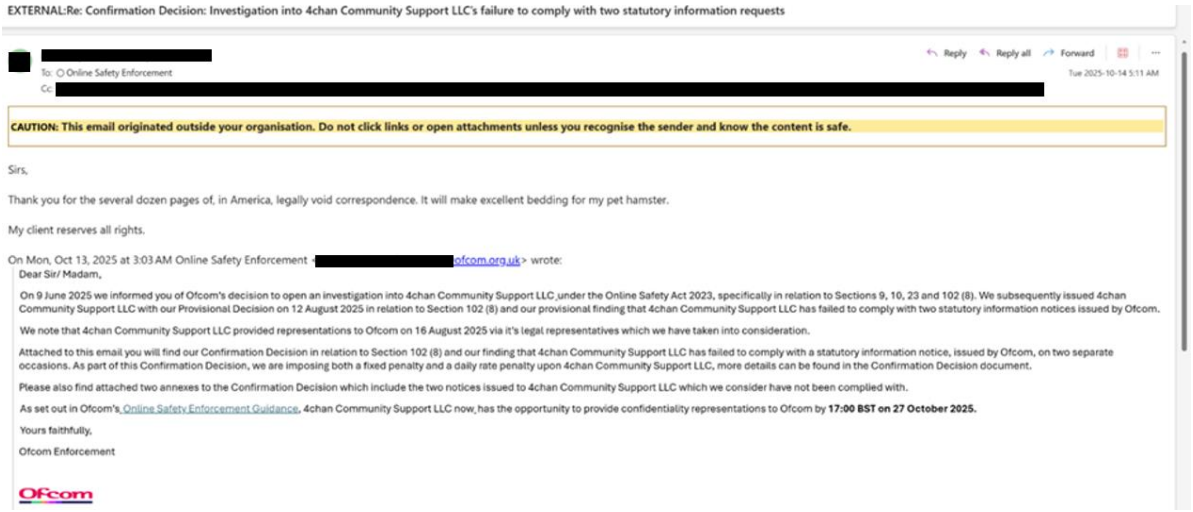
We trust that the above should be sufficient for you to close your file.

We copy relevant staff within the U.S. federal government on this reply.

Our client reserves all rights and waives none.

[redacted]

Email no.2: 14/10/2025



EXTERNAL:Re: Confirmation Decision: Investigation into 4chan Community Support LLC's failure to comply with two statutory information requests

[redacted]
To: Online Safety Enforcement
Cc: [redacted]

Reply Reply all Forward
Tue 2025-10-14 5:11 AM

CAUTION: This email originated outside your organisation. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Sirs,

Thank you for the several dozen pages of, in America, legally void correspondence. It will make excellent bedding for my pet hamster.

My client reserves all rights.

On Mon, Oct 13, 2025 at 3:03 AM Online Safety Enforcement <[redacted]ofcom.org.uk> wrote:

Dear Sir/ Madam,

On 9 June 2025 we informed you of Ofcom's decision to open an investigation into 4chan Community Support LLC under the Online Safety Act 2023, specifically in relation to Sections 9, 10, 23 and 102 (8). We subsequently issued 4chan Community Support LLC with our Provisional Decision on 12 August 2025 in relation to Section 102 (8) and our provisional finding that 4chan Community Support LLC has failed to comply with two statutory information notices issued by Ofcom.

We note that 4chan Community Support LLC provided representations to Ofcom on 16 August 2025 via it's legal representatives which we have taken into consideration.

Attached to this email you will find our Confirmation Decision in relation to Section 102 (8) and our finding that 4chan Community Support LLC has failed to comply with a statutory information notice, issued by Ofcom, on two separate occasions. As part of this Confirmation Decision, we are imposing both a fixed penalty and a daily rate penalty upon 4chan Community Support LLC, more details can be found in the Confirmation Decision document.

Please also find attached two annexes to the Confirmation Decision which include the two notices issued to 4chan Community Support LLC which we consider have not been complied with.

As set out in Ofcom's Online Safety Enforcement Guidance, 4chan Community Support LLC now has the opportunity to provide confidentiality representations to Ofcom by **17:00 BST on 27 October 2025.**

Yours faithfully,

Ofcom Enforcement

Ofcom

Email no.3: 21/11/2025

Re: EXTERNAL:Re: Non-confidential copy of Confirmation Decision: Investigation into 4chan Community Support LLC's failure to comply with two statutory information requests

[redacted]
To: Online Safety Enforcement

Reply | Reply all | Forward
Fri 2025-11-21 2:05 PM

You forwarded this message on Tue 2025-11-25 3:04 PM

View conversation

CAUTION: This email originated outside your organisation. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Sirs,

My client doesn't answer to you, because it is American. It did not ask to be contacted by Ofcom, it did not want to be contacted by Ofcom, Ofcom has no authority to demand anything of it, and yet when my client lawfully refused to respond to your inquiries, exercising its Fourth and Fifth Amendment rights, your agency's response was to punish my client and its service providers, also Americans, by intentionally publishing their private information (as well as mine), which makes all of us liable to be the victims of harassment and abuse by pro-OSA partisans.

I thank you for eventually redacting mine, but on balance, I should have preferred for you to redact my client's.

Exercising its Fifth Amendment rights, my client makes no representations to you. What my client thinks and believes at any given time, particularly when those thoughts have the potential to give rise to self-incrimination in the eyes of a foreign regulator persecuting it in service of the Labour Party's political agenda, is my client's concern alone.

Here are the facts. Your agency is in the process of prototyping the roll-out of its new censorship law. I have personally received death threats from suspected British Internet users because of my representation of my clients against your agency. I will not be deterred from representing my clients by that conduct. Whether your agency chooses to aid and abet it is a matter for you to decide.

You should consider this e-mail as constructive feedback from opposing counsel whom you will surely encounter again, and again, and again, so long as your agency persists in its efforts to target Americans.

My client reserves all rights.

Email no. 4: 04/12/2025

EXTERNAL:Re: URGENT: FOR THE ATTENTION OF 4chan Community Support LLC

[redacted]
To: Online Safety Enforcement
Cc: [redacted]

Reply | Reply all | Forward
Thu 2025-12-04 1:48 PM

4chan Investigation Expansion I...
213 KB

CAUTION: This email originated outside your organisation. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Sirs,

Last night Sarah Rogers, the United States Under Secretary of State for Public Diplomacy, let it be known on GB News, in London, that the United States Congress is considering introducing a federal version of the GRANITE Act.

The GRANITE Act, at state level, is a foreign censorship shield law reform proposal I threw together exactly 51 days ago on my personal blog. Colin Crossman, Wyoming's Deputy Secretary of State, turned it into a bill. Now, it seems, very dedicated staffers in Congress and our principled elected representatives are keen to make it a federal law.

The proposal was inspired by your agency's censorship letters, letters targeting Amercians in America for conduct occurring wholly and exclusively in America, letters just like this one and the dozen others you've sent to my countrymen over the last eleven months.

It was also inspired by the passive-aggressive phone call I had with officials your Home Office in 2023 asking me how my clients would implement your rules because, according to them, my clients' users would demand that they comply (as far as I am aware, of my clients' tens of millions of users among their various websites, not a single one has asked to be censored by the British). I replied that if your country wanted to censor my clients, the British Army would need to commence a ground invasion of the United States and seize their servers by force. That answer remains unchanged.

4chan is a website where users are free to remain anonymous. Your "age assurance" rules would destroy anonymity online, which is protected by the First Amendment. Accordingly, 4chan will not be implementing your "age assurance" rules.

Prompt and voluntary cooperation with law enforcement on child safety issues, including UK law enforcement, is what really matters for children's safety online. That work happens quietly and non-publicly with officials who are tasked with performing it, namely, the police. My client will not be working with you on that important work because your agency is a censorship agency, not a law enforcement agency. Ofcom lacks the competence and the jurisdiction to do the work that actually matters in this space.

Regardless of whether GRANITE makes it on the books or not, and I will do everything in my personal power to ensure that it does, my clients don't answer to you, 4chan included, because of the First Amendment. But then, Ofcom already knew that.

I copy the U.S. government and government officials in several states. My client reserves all rights.

[redacted]

Email no.5 27/02/2026

EXTERNAL:Re: Provisional Decision - Ofcom's investigation into 4chan under the Online Safety Act 2023 - next steps

[redacted]
To: Online Safety Enforcement

Reply Reply all Forward
Fri 2026-02-27 12:51 PM

CAUTION: This email originated outside your organisation. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Ofcom,

Mr. Whiskers looks forward to your confirmation decision, which will be shredded and used to line his enclosure upon receipt.



My client reserves all rights.

[redacted]

A3. Information notice dated 14 April 2015 (issued under section 100 of the Act)

Please see PDF titled ‘Information notice dated 14 April 2025’ attached to this document.

A4. Protection of Children investigation expansion letter

Please see PDF titled ‘4chan Investigation Expansion letter’ dated 4 December 2025 attached to this document.

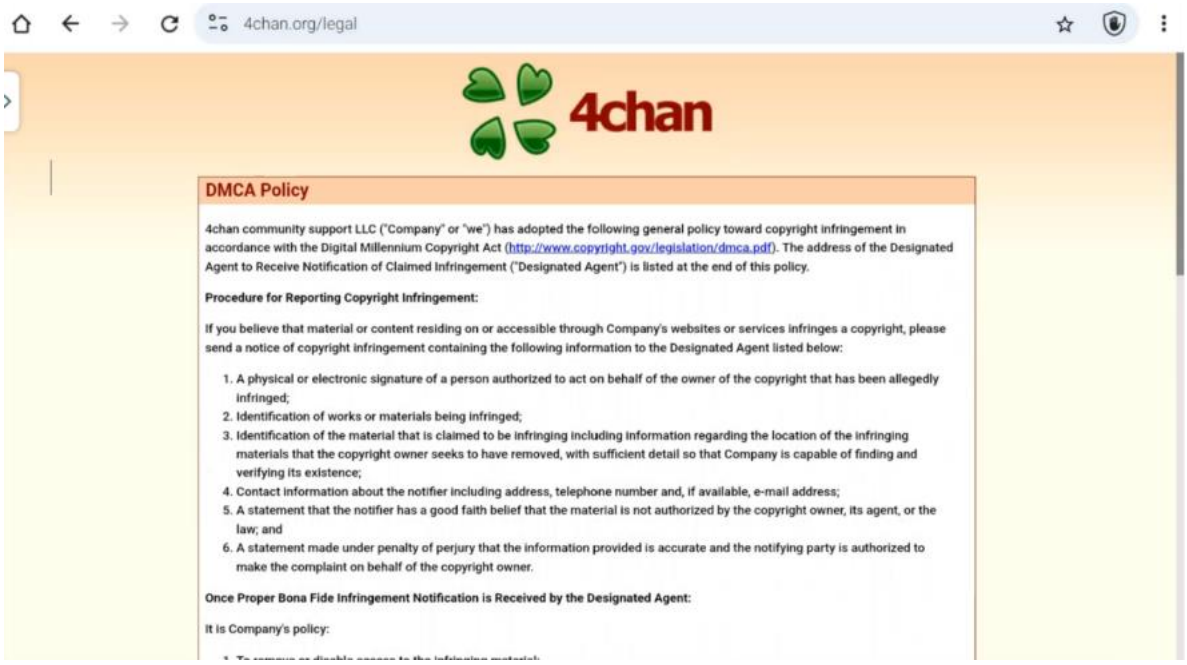
A5. Ofcom's review of 4chan.org

Content warning: explicit descriptions and images of sexual activity included in this section.

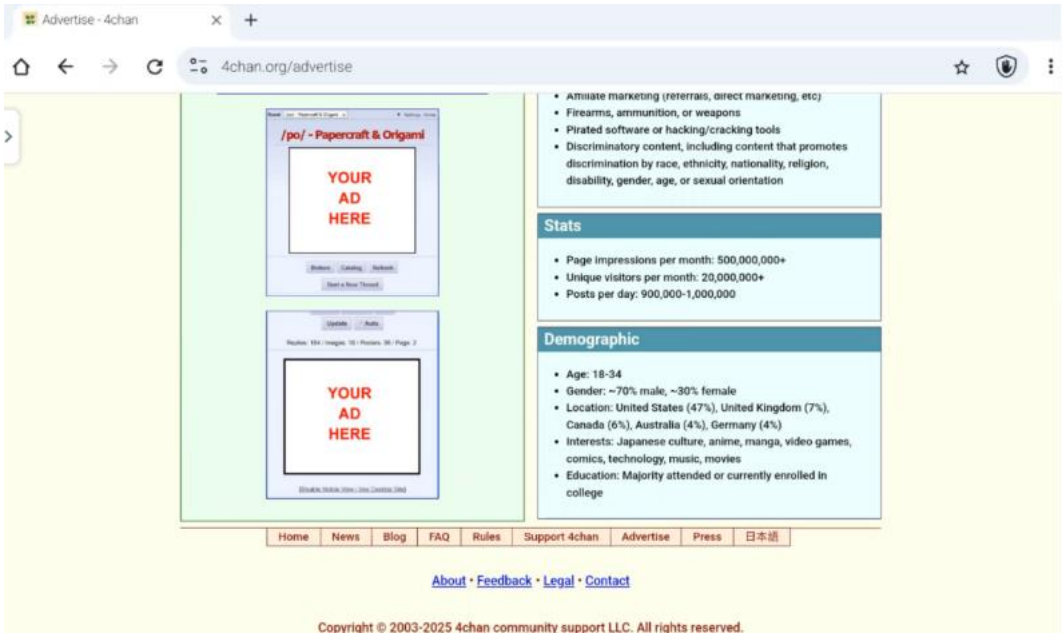
Document no.1: 4chan Community Support LLC is the owner of the copyright of 4chan.org



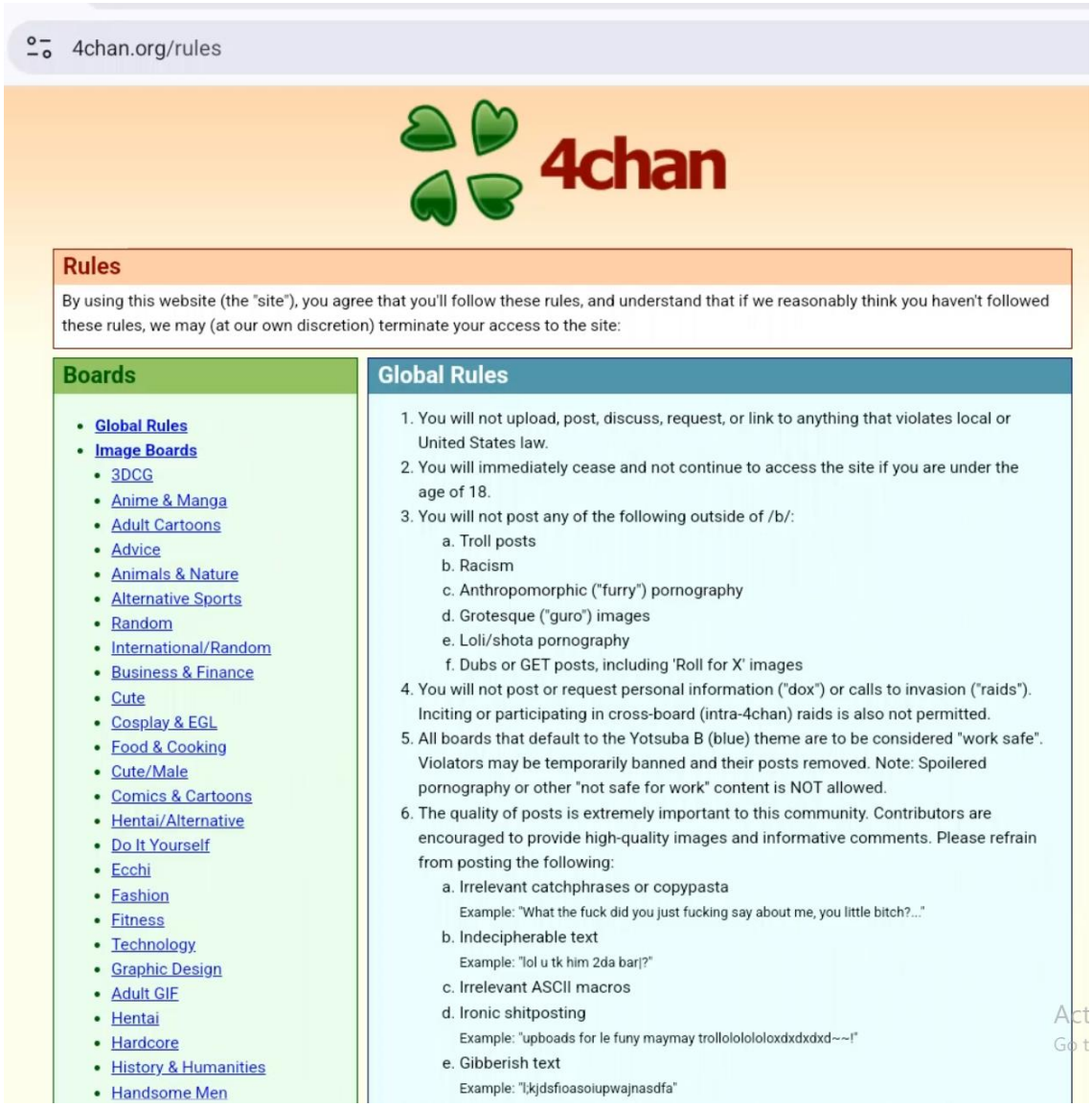
Document no.2: 4chan Community Support LLC is the owner of 4chan.org



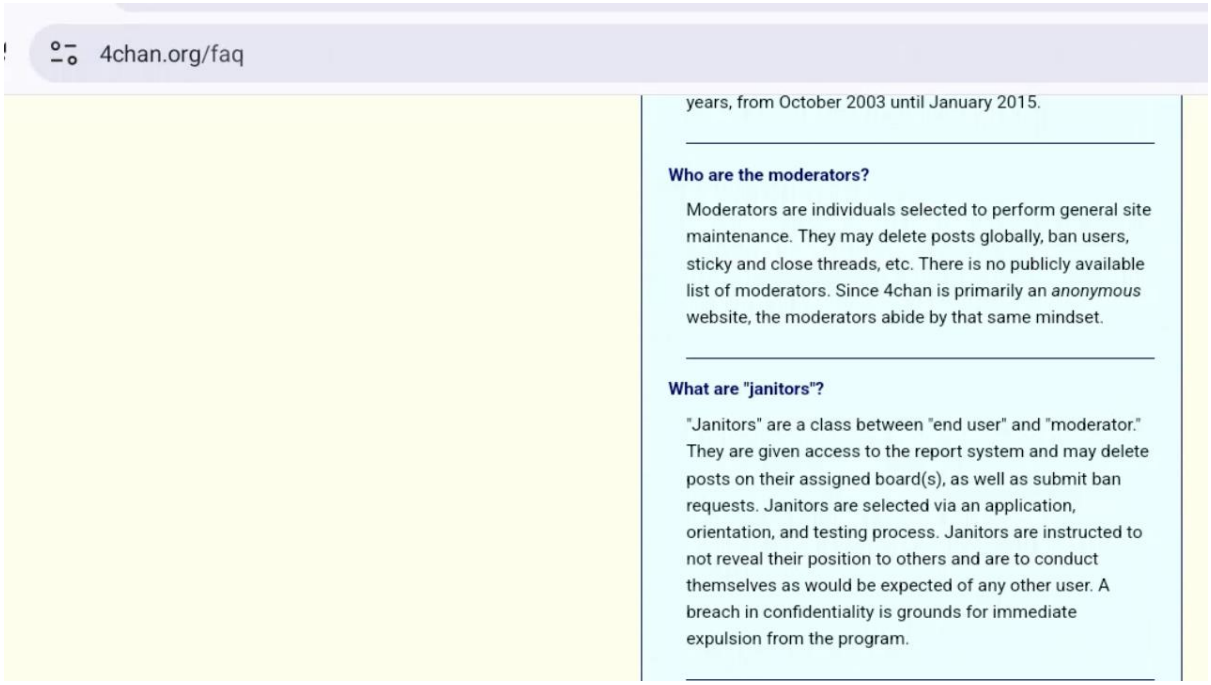
Document no.3: 4chan user demographics



Document no.4: 4chan Terms of Service



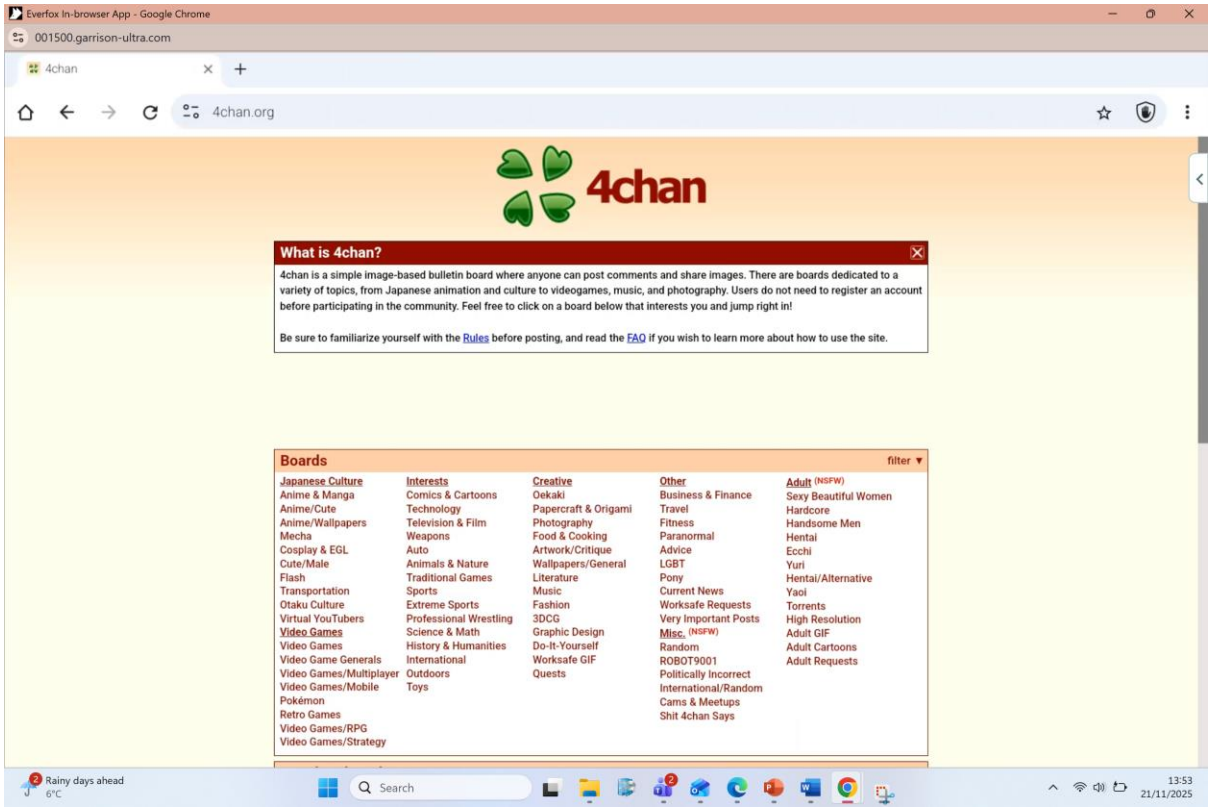
Document no.5: 4chan FAQs



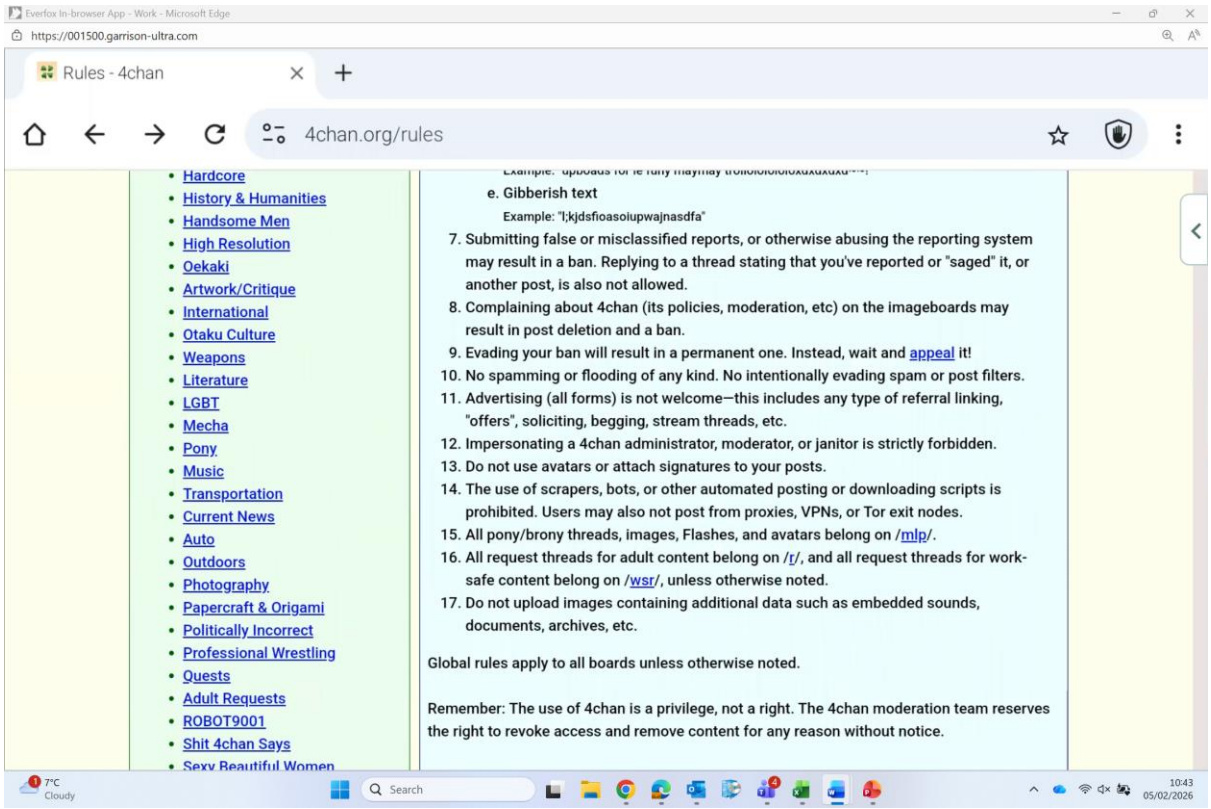
Document no.6: 4chan FAQs



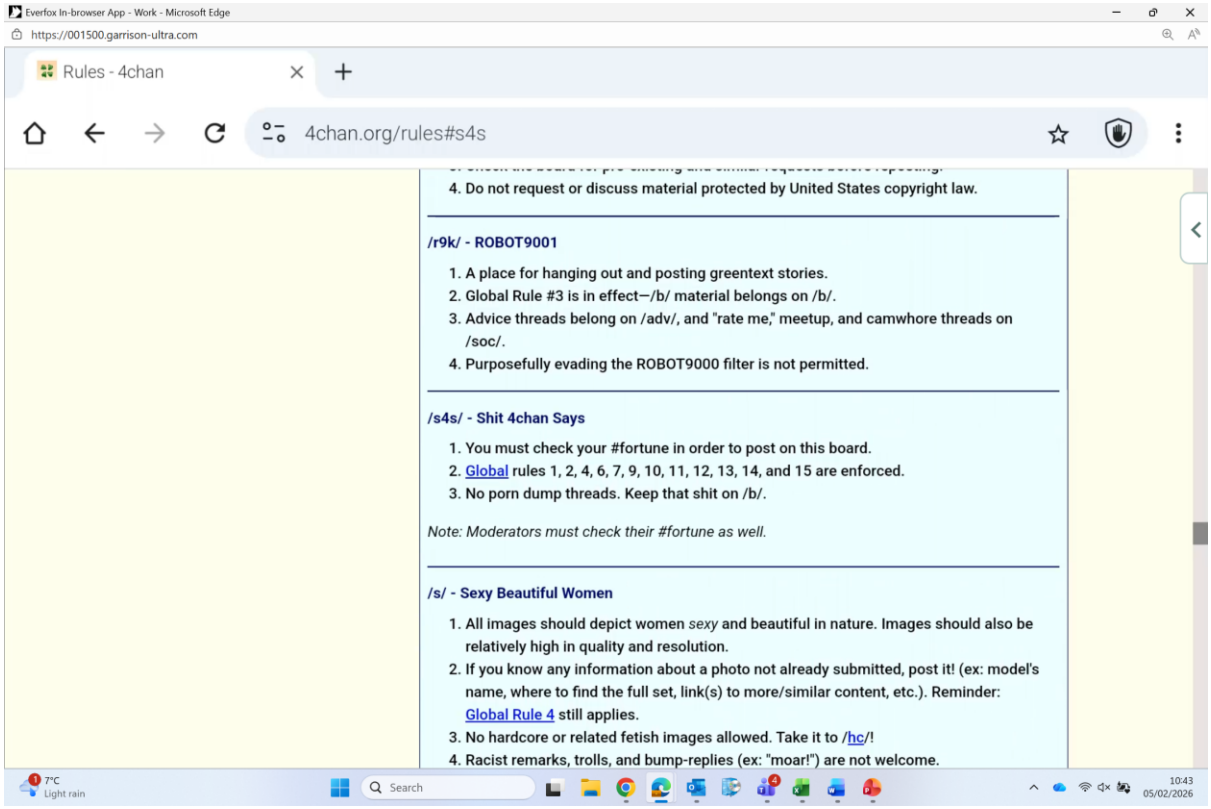
Document no.7: 4chan's 'Adult (NSFW)' boards



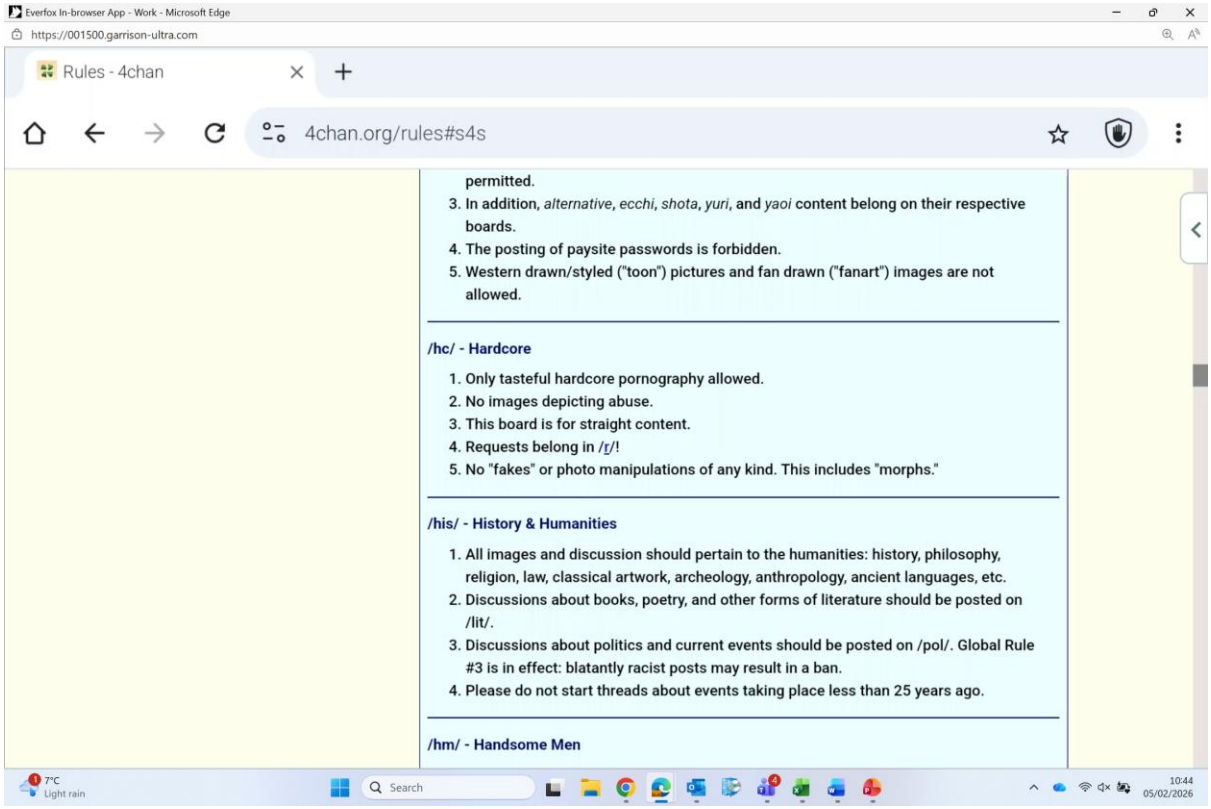
Document no.8: Global Rule 16

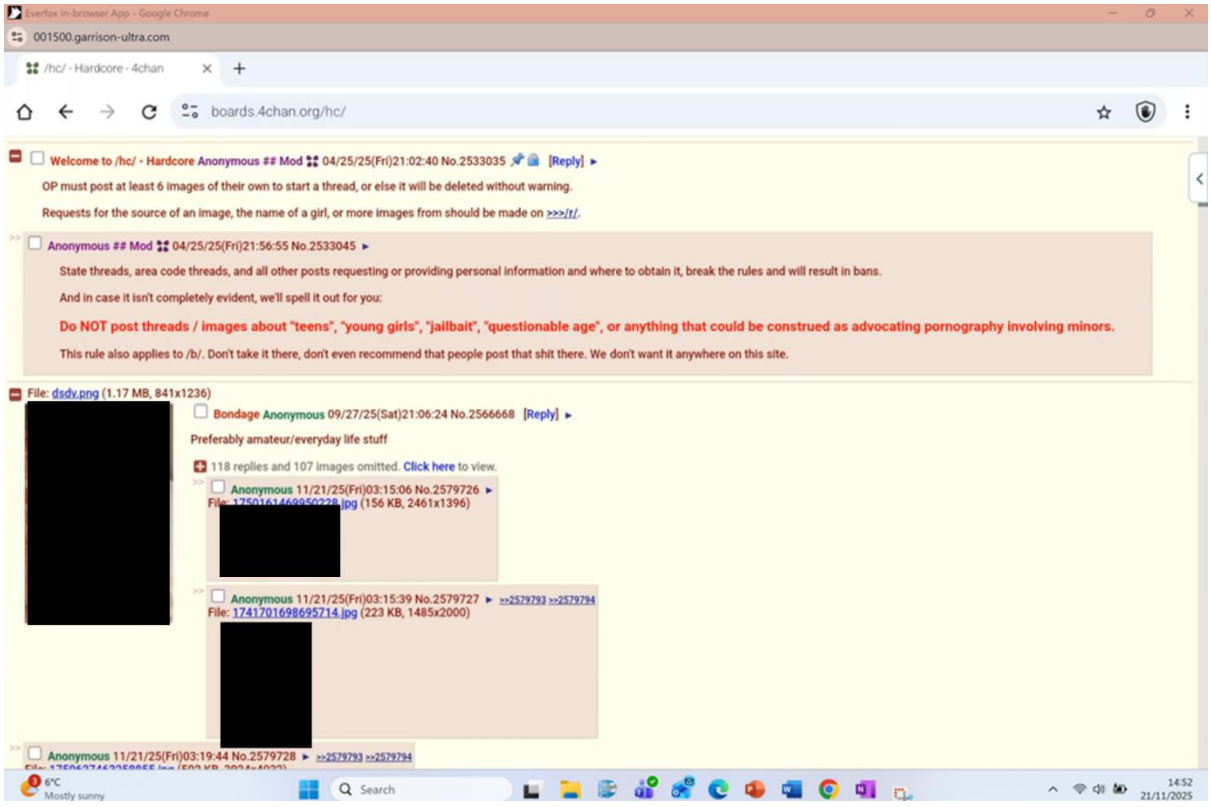


Document no.9: /s4s/ board

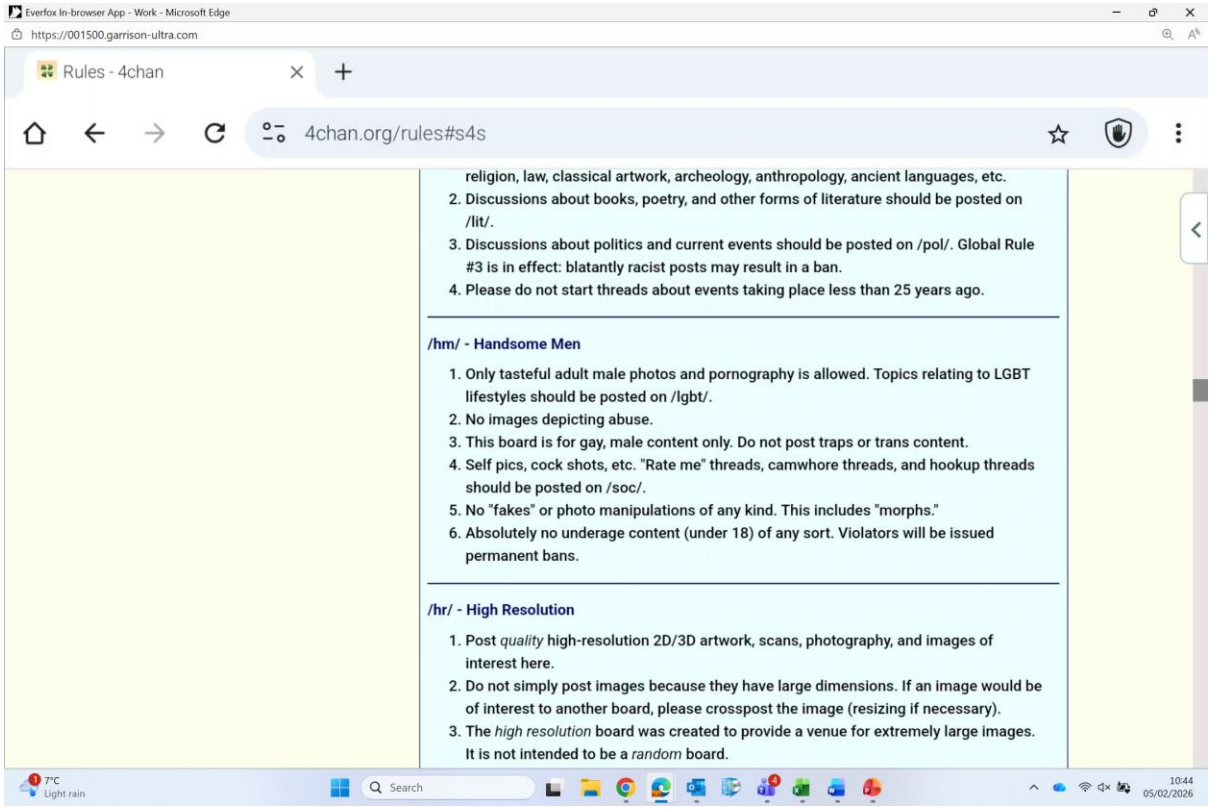


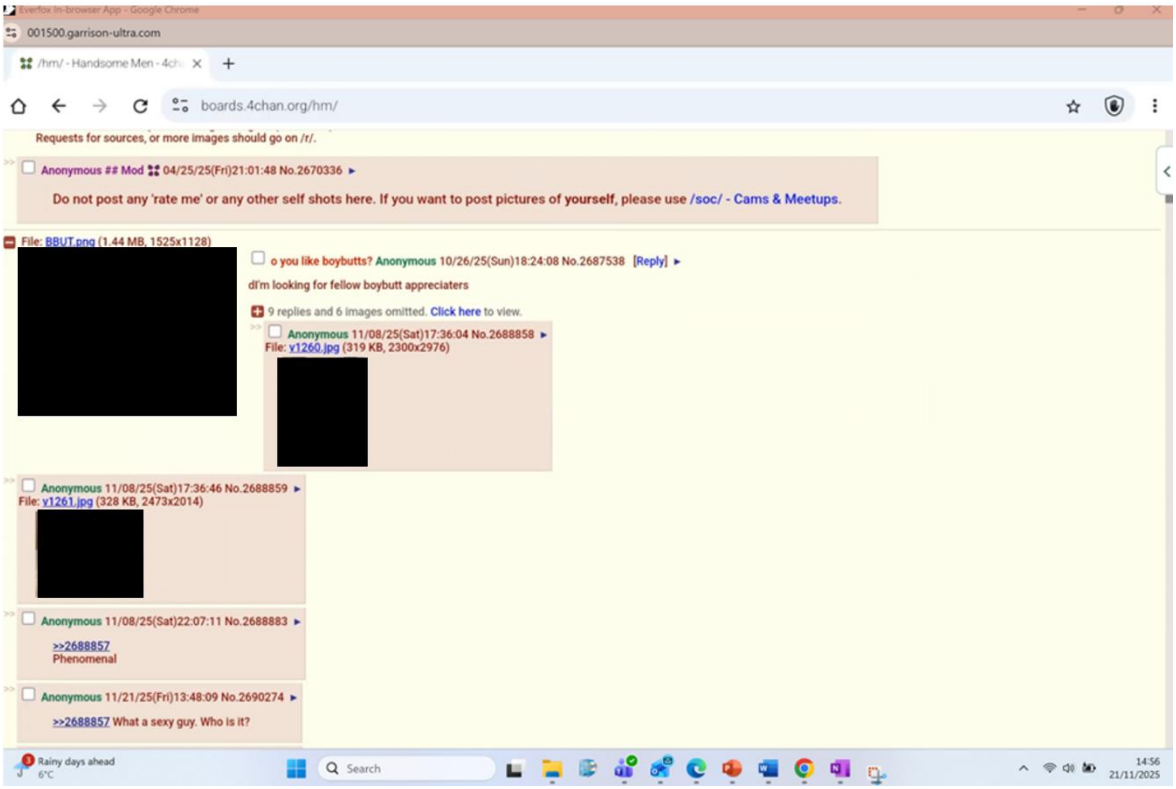
Document no.10: /hc/ board



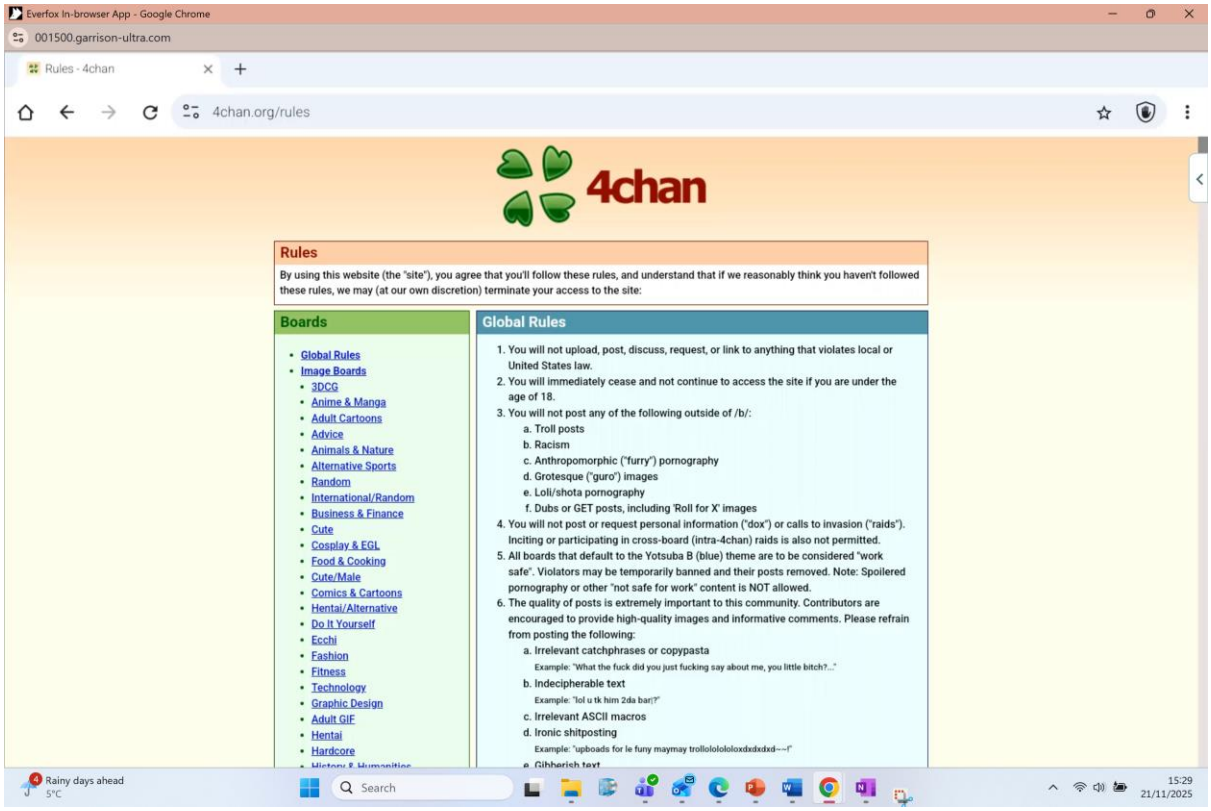


Document no.11: /hm/ board





Document no.12: Global Rules prohibit under 18s



Document no.13: Pop-up disclaimer when accessing NSFW board

